

FORMAL COMPLAINT TO THE INFORMATION REGULATOR (SOUTH AFRICA)

Systemic Non-Compliance with POPIA and PAIA by the Office of the Chief Justice

Complainant: Wilbur William Matthee
Respondent: Office of the Chief Justice (OCJ) / The Labour Court & High Court (Western Cape Division)
Date: 9 July 2026
Subject: Formal Complaint regarding Systemic Non-Compliance with POPIA and PAIA

1. Purpose of Submission

This complaint is lodged against the Office of the Chief Justice (OCJ) for systemic administrative failures that constitute a severe interference with the protection of personal information (POPIA) and the promotion of access to information (PAIA). The conduct of registry officials — spanning data breaches, system integrity failures, and suppression of judicial records — has created a functional obstruction of justice, denying a self-represented litigant access to accurate personal and procedural data.

2. Jurisdiction

The Information Regulator has exclusive jurisdiction to investigate:

- Unauthorised Processing & Disclosure (Sections 8, 9, 26, 74 of POPIA).
- Data Integrity & Quality Failures (Section 19 of POPIA).
- Denial of Access to Personal Records (Section 23 of POPIA and PAIA).
- Systemic Security Compromises (Section 22 of POPIA).

3. Summary of Systemic Breaches

#	Complaint	Responsible Official	Breach of Law	Core Incident
1	Unauthorised Disclosure	Registrar Tsakani Soundy	Sec 8, 9, 26, 74	Transmitted third-party medical/psychiatric records (Armstrong v City of Cape Town) to an unauthorised party on 10 April 2026.
2	Data Integrity Failure	Director Ruanne David	Sec 19, 22	“Ghost Notification” system generates false hearing dates. Formal admission of system defects on 22 June 2026, yet failure to remediate.
3	Suppression of Personal Records	Acting Chief Registrar N. Hanekom	Sec 23 / PAIA	Withholding of official audio recordings (personal data) requested since 26 March 2026, preventing verification of proceedings.
4	Procedural Gatekeeping	Registrar Farzaana Ismail	Sec 19 / PAIA	Manufacturing non-existent procedural requirements (e.g. “referral certificate”) to create contradictory official records and delay adjudication.

4. Urgent Relief Sought

- An urgent investigation into the OCJ's data handling and automated notification systems.
- A directive for preservation of evidence (digital audit trails, audio recordings).

-
- A remediation order requiring the OCJ to correct official indices and provide accurate data to the Complainant.
 - Protection from retaliation regarding the Complainant's constitutional obligations to report systemic failures to Parliament.

Formal Declaration in Lieu of Physical Commissioning

To: The Information Regulator (South Africa)

Regarding: Formal Complaint of Systemic Governance Failure

Date: 9 July 2026

I, the undersigned Wilbur William Matthee, do hereby declare as follows:

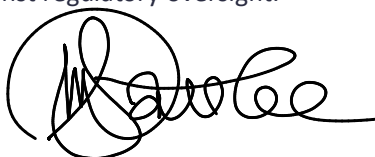
- The contents of this formal complaint and its accompanying annexures are true, correct, and within my personal knowledge.
- This document is electronically signed and authenticated in terms of Section 13 of the Electronic Communications and Transactions Act, 2002.
- I state under penalty of perjury that this file has not been physically printed or processed before a traditional Commissioner of Oaths due to absolute, severe financial impossibility and physical destitution.
- This destitution is not an organic state of affairs; it is the direct, intended consequence of the unlawful corporate retaliation, systemic UI-19 statutory fraud, and bad-faith litigation attrition documented inside this very complaint.
- The Respondents' ongoing blockade of my statutory safety nets has intentionally stripped me of the financial means to print legal paper or secure transport to a physical station for commissioning.
- To reject this digital, electronically signed submission on the basis of a lack of a physical ink stamp would be to permit the perpetrators of institutional fraud and administrative malfeasance to use the financial ruin they inflicted on a whistleblower as a shield against regulatory oversight.

Signed at Cape Town on this 9th day of July 2026.

Electronically Signed:

Wilbur William Matthee

Founder – EthicHawks Forensic Governance & Compliance Consultancy



Detailed Complaints

Complaint 1: Unauthorised Disclosure of Third-Party Special Personal Information (Registrar Tsakani Soundy)

Date of Incident: 10 April 2026 (09:32)

Responsible Official: Registrar Tsakani Soundy (TSoundy@judiciary.org.za)

The Incident:

On 10 April 2026, Registrar Soundy transmitted the complete, stamped court file of a third party — Daniel Armstrong v City of Cape Town (Case No: 2026-080903) — to me via email. The file contained:

- Full name and identity.
- Detailed medical diagnosis (Bipolar II Disorder, early vascular dementia).
- Psychiatric reports and employment disciplinary records.
- Confidential family circumstances.

Aggravating Factor:

On 5 May 2026, Registrar Soundy explicitly assumed manual control of my document uploading process (Case No: 2026-077546). By taking manual control, she accepted operational responsibility for the accuracy, integrity, and security of filings. This makes her simultaneous failure to secure the Armstrong records a direct breach of her duty of care.

Legal Breaches:

- Section 8 & 9: Processing and disclosing personal information without the data subject's consent and without a lawful purpose.
- Section 26: Failure to secure the confidentiality of sensitive (special) personal information.
- Section 74: Interference with the protection of personal information.

Impact:

This disclosure exposed a vulnerable third party (Mr Armstrong) to potential stigma and violated his right to privacy. It also demonstrates a systemic disregard for data security protocols within the registry.

Evidence: Email from Tsakani Soundy (10 April 2026); Attached Armstrong Statement of Claim.

Complaint 2: Systemic Data Integrity Failure – “Ghost Notification” System (Director Ruanne David)

Date of Incident: 18 June 2026 (Admitted by OCJ on 22 June 2026)

Responsible Official: Director Ruanne David (RDavid@judiciary.org.za)

The Incident:

On 18 June 2026 at 10:55, I received an official SMS notification from the OCJ confirming a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirmed that no such hearing exists in the official court record.

Official Admission:

On 22 June 2026 at 13:53, Director Ruanne David formally admitted:

“the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail.”

Legal Breaches:

- Section 19: Failure to maintain the integrity and accuracy of personal information. The automated system processes factually incorrect procedural data.
- Section 22: Failure to notify data subjects of a security compromise affecting their personal information.
- Section 74: Interference with the right to accurate data processing.

Failure to Remediate:

Despite formal acknowledgment of the system defects, the OCJ has taken no corrective action. The “ghost notification” persists, forcing me to constantly cross-verify official correspondence against physical records — creating an unjustifiable administrative burden and causing severe psychological strain. This fundamentally undermines the trust required for a litigant to participate effectively in court proceedings.

Evidence: *Screenshot of SMS (18 June 2026); Email from Director David (22 June 2026).*

Complaint 3: Denial of Access to Personal Records – Suppression of Audio Evidence (Acting Chief Registrar Nicola Hanekom)

Date of Incident: *Formal requests made 26 March 2026 & 03 June 2026 (deemed refusal as of current date).*

Responsible Official: *Acting Chief Registrar Nicola Hanekom (NHanekom@judiciary.org.za)*

The Incident:

I submitted formal, urgent requests for the official digital audio recordings of High Court proceedings in which I was a litigant (Case No: 2026-066952 and 2026-086906). These recordings contain my personal voice, testimony, and representations.

Official Response (or lack thereof):

Acting Chief Registrar Hanekom has acknowledged receipt of these requests (read receipts) but has failed to provide the recordings or even respond substantively. This constitutes a deemed refusal under PAIA.

Mischaracterisation Tactic:

When I followed up, the Registrar's office attempted to reclassify the correspondence as “Labour Court” communications — a demonstrably false assertion — to evade processing the request.

Legal Breaches:

- Section 23 of POPIA (read with PAIA): Failure to provide a data subject with access to their own personal information held by a responsible party.
- Section 74: Obstruction of access to personal information necessary to protect legal interests and prevent misrepresentation.

Impact:

The audio recordings are the sole objective evidence required to verify the mechanics of the 25 March 2026 hearing (where a punitive Scale C costs order was granted) and the misrepresentation to The Speaker of the National Assembly. Withholding this evidence prevents me from challenging that order and prevents accurate reporting to parliamentary oversight committees, thereby facilitating potential misrepresentation of proceedings to external constitutional bodies.

Evidence: *Audio Request email (26 March 2026 & 03 June 2026); Read receipts; Escalation correspondence.*

Complaint 4: Procedural Obstruction and Misrepresentation of Official Records (Registrar Farzaana Ismail)

Date of Incident: *Contradictory positions issued 12 May 2026 vs. 10 June 2026 (ongoing).*

Responsible Official: Registrar Farzaana Ismail (FIsmail@judiciary.org.za)

The Incident:

Registrar Ismail has created a contradictory and inaccurate official record regarding the status of my matter (Case No: 2026-077546):

- On 12 May 2026: The Registrar explicitly confirmed that my matter was on the registry “backlog” and awaiting allocation — confirming procedural compliance.
- On 10 June 2026: The Registrar radically pivoted, inventing a non-existent requirement for a “referral certificate” that was never previously required, thereby manufacturing a procedural barrier to adjudication.

Legal Breaches:

- Section 19: Processing and maintaining inaccurate, contradictory personal information. The official file now contains conflicting statuses that prejudice the Complainant.
- Section 23 / PAIA: Denial of access to an accurate, reliable official record, creating administrative uncertainty that prevents the monitoring of legal proceedings.
- Section 74: Interference with administrative due process by exceeding statutory authority to create arbitrary barriers.

Impact:

This shifting narrative is not indicative of administrative error; it constitutes a calculated gatekeeping tactic designed to delay adjudication. The Respondent has exceeded her administrative authority, undermined the principle of access to justice, and willfully obstructed the judicial process.

Evidence: *Correspondence Log (12 May & 10 June 2026); Formal Escalation (EH/JO/2026/003).*

Context of Protected Disclosures & Whistleblower Protection

The Complainant is a Specialist Nurse with 16 years of clinical governance experience and the Founder of EthicHawks Forensic Consultancy.

Pursuant to Section 8 of the Protected Disclosures Act (PDA), the Complainant has made protected disclosures regarding systemic regulatory failures, patient safety risks, and governance gaps affecting 1.9 million medical scheme beneficiaries and the National Health Insurance (NHI) architecture. These disclosures for submission to the Speaker of Parliament and relevant Portfolio Committees — a right expressly protected under Sections 55(2) and 56 of the Constitution.

The OCJ's refusal to release accurate records (audio recordings and accurate case statuses) directly hinders the Complainant's ability to verify factual assertions for these parliamentary submissions. This suppression of data exposes the Complainant to retaliatory litigation (specifically, contempt proceedings instituted by Afrocentric Investment Corporation), which seeks to characterise statutory parliamentary oversight as a breach of a High Court interdict now seeking my imprisonment.

The Complainant formally submits that:

- A court order cannot be weaponised to suppress protected disclosures made in the public interest.
- The Information Regulator is empowered to protect whistleblowers from victimisation arising from the reporting of systemic non-compliance.
- The failure of the OCJ to provide accurate data is directly facilitating this retaliation by depriving the Complainant of the evidentiary foundation required to defend his constitutional rights.

Prayer for Relief (Formal Remedy Sought)

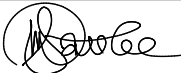
WHEREFORE, the Complainant respectfully requests that the Information Regulator:

- Initiate an Urgent Investigation into the OCJ's data handling, notification systems, and registry practices as outlined in this complaint.
- Issue a Preservation Directive ordering the OCJ to preserve all digital audit trails, electronic correspondence, and audio recordings related to Cases 2026-066952, 2026-086906, 2026-077546, and 2026-083299.
- Direct Immediate Remediation requiring the OCJ to provide the requested audio recordings within 5 working days; confirm in writing the correct, accurate status of Case No: 2026-077546; and rectify the “ghost notification” system to ensure data integrity.
- Facilitate Regulatory Mediation to clarify the OCJ's statutory obligations under POPIA/PAIA, ensuring that civil litigation is not used to silence the reporting of systemic governance failures.
- Exercise Protective Authority to shield the Complainant from retaliation arising from these protected disclosures, ensuring that the constitutional right to engage with Parliament is not unlawfully obstructed.

Certificate of Completeness

I, Wilbur William Matthee, declare that the information provided herein is, to the best of my knowledge, true and correct, and I attach the following supporting documents:

Annexure	Description
A1	Email from Registrar Soundy (10 April 2026) – Armstrong documents
A2	Armstrong v City of Cape Town Statement of Claim (revealing special personal data)
A3	Screenshot of “Ghost Notification” SMS (18 June 2026)
A4	Email from Director David admitting system failures (22 June 2026)
A5	Formal Escalation to Judge Presidents (EH/JO/2026/003 – 09 June 2026)
A6	EthicHawks Final Closure Report (23 June 2026)
A7	Notice of Administrative Default (01 July 2026)
A8	Audio Request emails to Acting Chief Registrar Hanekom (March–July 2026)
A9	Registrar Ismail’s contradictory correspondence (12 May & 10 June 2026)
A10	Screenshot of “Multiple emails per 1 portal upload”

Signature: 

Date: 9 July 2026

Place: Cape Town

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health
PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge

info@ethichawks.co.za | 069 635 1435

ANNEXURE

A1

Email from Registrar Soundy – Armstrong Documents

Date of Evidence:	10 April 2026, 09:32
Related Complaint:	Complaint 1 – Unauthorised Disclosure of Third-Party Special Personal Information
Responsible Official:	Registrar Tsakani Soundy (TSoundy@judiciary.org.za)
Case Reference(s):	2026-080903 (Armstrong v City of Cape Town); 2026-077546
Statutory Reference:	POPIA Sections 8, 9, 26, 74
Evidence Type:	Email correspondence with attached third-party court file

This annexure evidences the unauthorised transmission of a third party's stamped court file, including special personal information (medical and psychiatric records), to the Complainant.

Evidence for A1 follows on the next page.

SENDER (FROM): Wilbur William Matthee <info@ethichawks.co.za>
RECIPIENT (TO): Tsakani Soundy <TSoundy@judiciary.org.za>
CARBON COPY (CC): Farzaana Ismail <FIsmail@judiciary.org.za>, RDavid@judiciary.org.za
TIMESTAMP (DATE): Fri, 10 Apr 2026 09:48:33 +0200
SUBJECT LINE: Re: Urgent Plea: Filing Deadline / Intent to File
=====

Dear Ms. Soundy,

Thank you for your email.

Please note that the court document provided appears to be inaccurate, as it refers to a matter involving David Potgieter and the City of Cape Town rather than my own.

I have attached my statement of claim, which I shared with you yesterday morning. I have ensured that this attachment includes the complete bundle of documents required for filing.

Kind regards,

Wilbur William Matthee

On Fri, 10 Apr 2026, 09:32 Tsakani Soundy, <TSoundy@judiciary.org.za> wrote:

> Good day

>

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>

> Attached is your stamped copy of the statement of claimed.

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> Case number is written on the cover page.

>

>

>

> Regards

>

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> *From:* Wilbur William Matthee <info@ethichawks.co.za>

> *Sent:* Thursday, April 9, 2026 3:41 PM

> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>

> *Cc:* Tsakani Soundy <TSoundy@judiciary.org.za>

> *Subject:* Re: Urgent Plea: Filing Deadline / Intent to File

>

>

>

> Dear Ms Ismail,

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>

> I really do not know what i can do for the registrar to assist me.

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>

> I am already on the streets i dont know what else to do. Please assist me
> with the case number in oeder to serve the Respondent.

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> I beg you please help me.
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>
> Sincerely
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>
>
> Wilbur
>
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> On Thu, 09 Apr 2026, 10:02 Wilbur William Matthee, <info@ethichawks.co.za>
> wrote:
>
> Kindly assist with the case number for service. 1%
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> Regards
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> On Thu, 09 Apr 2026, 09:58 Wilbur William Matthee, <info@ethichawks.co.za>
> wrote:
>
> Dear Ms Ismail,
>
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>
> The initial document i shared yesterday had a few technical issues and as
> a result that it was not signed by me the document i sent attached is the
> correct signed version.
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> I was up all night to make the necessary adjustments to the statement of
> claim.
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> Kindly assist with filling the correct signed SOC.
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> Thank you for confirming it has been accepted. Attached the signed SOC.
> Phone on 2%.
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> Kind regards
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> On Thu, 09 Apr 2026, 09:54 Farzaana Ismail, <FIsmail@judiciary.org.za>
> wrote:
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> Good day Sir
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> I have been informed that your matter was approved and a case number was
> issued.
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>
>
> Regards
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>
> *From:* Wilbur William Matthee <info@ethichawks.co.za>
> *Sent:* Thursday, 09 April 2026 09:47
> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>; Tsakani Soundy <
> TSoundy@judiciary.org.za>
> *Subject:* Urgent Plea: Filing Deadline / Intent to File
>
>
>
> Dear Ms. Ismail and Ms. Soundy,
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>
>
> I am writing to you in a state of extreme urgency regarding the deadline
> for filing my constructive dismissal and whistleblowing-related
> application, which falls today, 9 April 2026.
>
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>
> I am currently facing severe financial destitution and homelessness as a
> direct result of the occupational detriment I have suffered. Due to these
> circumstances, and I am unable to log in to the filing portal or physically
> reach the court. I am reaching out to formally request the Court's
> indulgence and assistance in ensuring my matter is recorded as "intended
> for filing" today to avoid the further legal hurdle of a condonation
> application—a process I simply cannot afford.
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>
>
> I wish to draw the Registrar's attention to the following:
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>
> Ministerial Recognition of Hardship: As of yesterday, 8 April 2026, the
> Minister of Justice, Mmamoloko Kubayi, officially released the **Protected
> Disclosure Bill. The Minister explicitly acknowledged that whistleblowers
> in South Africa face "weak protections" and "limited support," specifically
> highlighting the need for legal and financial assistance for those targeted
> for making protected disclosures.
>

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>
> Constitutional Right to Access to Justice: My inability to file today is
> not due to negligence, but a direct consequence of the "priority 1"
> material risk report I filed, which led to my current state of destitution.
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> *Request for Assistance: I am a specialist nurse (BTech Psychiatry/Health
> Management) currently unable to maintain even basic connectivity. I am
> pleading for the court to accept this email as a placeholder for my
> application while I seek an emergency means to finalize the digital upload.
> Or assistance by tour office please.
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> I am a whistle-blower who has acted in the public interest within the NHI
> framework. To be barred from justice due to the very poverty caused by my
> disclosure would be a failure of the protections the Minister has just
> pledged to uphold.
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> I humbly request your guidance on how I may proceed under these
> extraordinary circumstances.
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> Sincerely,
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>
>
> Wilbur Matther
>
>
>
> *Disclaimer:*
>
> The information contained in this communication from
> fismail@judiciary.org.za sent at 2026-04-09 09:54:32 is confidential and
> may be legally privileged. It is intended solely for use by
> info@ethichawks.co.za and others authorized to receive it. If you are not
> info@ethichawks.co.za you are hereby notified that any disclosure,
> copying, distribution or taking action in reliance of the contents. *Powered
> by Office Of The Chief Justice <<https://www.judiciary.org.za/>>*>
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> *Disclaimer:*
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> The information contained in this communication from
> tsoundy@judiciary.org.za sent at 2026-04-10 09:32:45 is confidential and
> may be legally privileged. It is intended solely for use by
> info@ethichawks.co.za and others authorized to receive it. If you are not
> info@ethichawks.co.za you are hereby notified that any disclosure,
> copying, distribution or taking action in reliance of the contents. *Powered
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ANNEXURE

A2

Armstrong v City of Cape Town – Statement of Claim

Date of Evidence:	10 April 2026 (received as attachment)
Related Complaint:	Complaint 1 – Unauthorised Disclosure of Third-Party Special Personal Information
Responsible Official:	Registrar Tsakani Soundy (TSoundy@judiciary.org.za)
Case Reference(s):	2026-080903 (Armstrong v City of Cape Town)
Statutory Reference:	POPIA Sections 8, 9, 26, 74
Evidence Type:	Court pleading containing special personal information
<i>This annexure is the underlying third-party document disclosed without consent, containing medical diagnosis, psychiatric reports, and confidential family circumstances.</i>	

Evidence for A2 follows on the next page.

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-080903**

In the matter between:

Daniel Armstrong

Plaintiff / Applicant

and

City Of Cape Town

Defendant / Respondent

Referrals or Statement of claim

NOTE: This document was filed electronically by the Registrar on 9/4/2026 at 9:31:22 AM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

STATEMENT OF CLAIM

IN THE LABOUR COURT OF SOUTH AFRICA (HELD AT CAPE TOWN)

Case Number: _____

In the matter between:

DANIEL ARMSTRONG Applicant

and

CITY OF CAPE TOWN Respondent



1. THE PARTIES

1.1 The Applicant is Daniel Armstrong, an adult male, previously employed as a Senior Clerk in the Recreation and Parks Department, with approximately 15 years of service.

1.2 The Respondent is the City of Cape Town, a municipality and employer.

1. JURISDICTION

2.1 This Honourable Court has jurisdiction in terms of section 50 of the Employment Equity Act and section 157 of the Labour Relations Act.

2.2 The dispute was referred to the CCMA under case number WECT21991-25 and remains unresolved. A Certificate of Outcome was issued on 15 January 2026.

2.3 On 31 October 2025, Commissioner Hanekom issued a ruling under the same case number. Having perused the facts and the Applicant's medical condition, the Commissioner identified that the dispute constitutes a claim of unfair discrimination under the Employment Equity Act, falling within the jurisdiction of the CCMA and this Honourable Court (see Annexure A1).

1. NATURE OF THE DISPUTE

3.1 This is a claim for unfair discrimination on the basis of disability.

3.2 The Respondent:

3.2.1 Failed to accommodate the Applicant's disability;

3.2.2 Treated medical incapacity as misconduct;

3.2.3 Created a hostile and humiliating work environment;

3.2.4 Ignored medical evidence, including confirmation from the Respondent's Occupational Medical Practitioner that sufficient information existed to initiate an incapacity process (Annexure B1), thereby worsening the Applicant's condition;

3.2.5 Disregarded medical advice that the Applicant's condition would deteriorate without a transfer.

3.3 The Applicant submits that the Respondent's conduct, including disciplining the Applicant instead of following an incapacity process, was directly linked to the Applicant's disability. The Respondent failed to reasonably accommodate the Applicant's condition and instead treated the consequences of the disability as misconduct, thereby constituting unfair discrimination on the basis of disability.

1. MEDICAL CONDITION AND EMPLOYER KNOWLEDGE

4.1 The Applicant has been under psychiatric care since 2016.

4.2 The Applicant suffers from Bipolar Disorder II and early vascular dementia, confirmed by MRI on 14 May 2024.

4.3 Medical specialists, including Dr Judy Ludwick and Dr Anton Krüger, recommended a transfer to a lower-stress environment (Annexures C1, K1).

4.4 The Respondent was aware of the Applicant's condition through medical reports and correspondence.

4.4.1 The Respondent's knowledge is further evidenced by correspondence and medical documentation submitted by the Applicant (Annexures B1, E1, F1, H1, J1, K1).

4.5 On 7 January 2025, the Respondent's Occupational Medical Practitioner, Dr Wayne Jones, confirmed that sufficient information existed for an incapacity assessment (Annexure B1).

4.6 Despite this, the Respondent failed to follow an incapacity process.

4.7 The Applicant was medically certified unfit for work from 23 December 2024 to 7 January 2025 due to illness, including psychosis (Annexure F1).

4.7.1 During this period, the Applicant experienced severe psychological distress, which was not treated as a medical incapacity but instead resulted in disciplinary action.

4.8 Despite this evidence, the Respondent disciplined the Applicant for absence during this medically certified period.

4.9 The Applicant was further advised by Dr Huwge that he should not return to work due to his condition (Annexure J1).



1. HARASSMENT AND HOSTILE WORK ENVIRONMENT

5.1 On 9 November 2021, the Applicant was publicly humiliated in a workplace WhatsApp group referred to as “Toilet Kakkers” (Annexure D1).

5.2 The Applicant was subjected to derogatory and humiliating conduct, as evidenced in WhatsApp communications (Annexure D1).

5.3 Superintendents engaged in intimidation and isolation, mocking the Applicant’s disability.

5.4 The Applicant’s manager stated that she did not trust him.

5.5 This conduct impaired the Applicant’s dignity and created a hostile working environment.



1. FAILED INTERNAL RESOLUTION

6.1 The Applicant attempted to resolve the matter internally via HR and the Head of Labour Relations, Matthew Le Grange.

6.2 These requests were ignored or not properly addressed (Annexure H1).

6.3 The Applicant’s union also failed to provide necessary assistance (Annexure M1).

1. DISCIPLINARY IRREGULARITIES

7.1 The Respondent pursued disciplinary action instead of incapacity support.

7.1.1 Despite the existence of medical evidence and recommendations supporting incapacity management (Annexures B1, C1, F1, J1, K1), the Respondent proceeded with disciplinary action instead of following an incapacity process.

7.2 The Respondent has failed or refused to provide verbatim minutes of the hearing, severely prejudicing the Applicant.

7.3 The Applicant respectfully requests that the Respondent be directed to provide the full hearing record (Annexure I1).

7.3.1 The Applicant notes that the Respondent referred him to an internal process to obtain the record; however, the Applicant elected to seek the record through external channels to avoid further delay and prejudice, given the Respondent’s prior conduct and lack of cooperation.

7.4 The Applicant was found guilty, received an 8-day unpaid suspension, and was warned not to rely on his medical condition (Annexure G1).

7.5 The Applicant was placed on unpaid sick leave after exhausting his sick leave, followed by authorised unpaid leave, resulting in a complete loss of income for January, further prejudicing the Applicant.

1. FAILURE TO ACCOMMODATE

- 8.1 No reasonable accommodation, transfer, or adjustment of duties was made.
- 8.2 This failure occurred despite repeated disclosures and requests for assistance and accommodation by the Applicant (Annexures E1, H1, L1).
- 8.3 The Respondent refused to assist with obtaining a specialist report, even where the Applicant offered to pay via salary deduction (Annexure E1).

1. FAMILY TRAUMA AND DISREGARD

9.1 On or about the date of an incident involving the Applicant's 15-year-old daughter being a victim of a violent mugging, the Applicant requested emergency leave or, alternatively, permission to work from home (Annexure L1).



- 9.2 The Respondent's manager refused this request, demanding an EAP reference number instead of providing support.
- 9.3 The Applicant escalated the matter to the Head of Labour Relations, Matthew Le Grange, seeking a reasonable solution.
- 9.4 No response was received.
- 9.5 This conduct worsened the Applicant's medical condition and impaired his dignity.

1. SELF-REPRESENTED LITIGANT STATUS

- 10.1 The Applicant appears in person, having been unable to secure pro bono legal assistance.
- 10.2 The Applicant has prepared these documents to the best of his ability, without the benefit of formal legal training.

1. RELIEF SOUGHT

- 11.1 Compensation equivalent to 12 months' remuneration, being R332,774.00.
- 11.2 Damages for impairment of dignity and emotional harm arising from the Respondent's conduct.
- 11.3 Repayment of the 8-day unpaid suspension (approximately R911.71 per day).
- 11.4 Payment of remuneration lost during the period of unpaid sick leave and authorised unpaid leave.
- 11.5 Further and/or alternative relief as this Honourable Court deems fair and equitable.
- 11.6 Costs of suit, in the event that the Respondent opposes this claim.

1. ANNEXURES

Annexure A1 – CCMA certificate and ruling

Annexure B1 – Dr Wayne Jones (incapacity)

Annexure C1 – Dr Ludwick report

Annexure D1 – WhatsApp screenshots

Annexure E1 – Emails (work issues)

Annexure F1 – Medical reports

Annexure G1 – Disciplinary outcome

Annexure H1 – HR and labor relations emails

Annexure I1 – Request for hearing record

Annexure J1 – Dr Huwge report

Annexure K1 – Psychiatrists reports recommending transfer

Annexure L1 – Emails about daughter incident

Annexure M1 – Union correspondence

SIGNED: **Daniel
Armstrong** Digitally signed by Daniel
Armstrong
Date: 2026.04.08 09:44:26
+02'00'

Date: 08.04.2026

DANIEL ARMSTRONG



ANNEXURE

A3

Screenshot of “Ghost Notification” SMS

Date of Evidence:	18 June 2026, 10:55
Related Complaint:	Complaint 2 – Systemic Data Integrity Failure (“Ghost Notification” System)
Responsible Official:	Director Ruanne David (RDavid@judiciary.org.za)
Case Reference(s):	OCJ Portal / CaseLines automated notification system
Statutory Reference:	POPIA Sections 19, 22, 74
Evidence Type:	SMS screenshot
<i>This annexure evidences an automated hearing-date notification that did not correspond to any hearing in the official court record.</i>	

Evidence for A3 follows on the next page.

Online System for more details.

Friday, 29 May • 11:44

A document has been submitted to the Court. Please log on to OCJ Court Online System for more details.

Thursday, 18 Jun • 10:55

A Hearing has been scheduled. Please log on to OCJ Court Online System for more details.

ANNEXURE

A4

Email from Director David Admitting System Failures

Date of Evidence:	22 June 2026, 13:53
Related Complaint:	Complaint 2 – Systemic Data Integrity Failure (“Ghost Notification” System)
Responsible Official:	Director Ruanne David (RDavid@judiciary.org.za)
Case Reference(s):	OCJ Court Online System
Statutory Reference:	POPIA Sections 19, 22, 74
Evidence Type:	Email correspondence – formal admission

This annexure records the OCJ's formal written admission that the Court Online system was experiencing defects affecting notifications, without subsequent remediation.

Evidence for A4 follows on the next page.

Read: RE: FORMAL NOTICE OF ADMINISTRATIVE MALFEASANCE & REGISTRY IRREGULARITY

info <info@ethichawks.co.za >

6 emails

Wilbur Matthee <info@ethichawks.co.za >

Mon, 22 Jun 2026 1:58:11 PM +0200

To "Ruanne David"<RDavid@judiciary.org.za>

Your message

To: "Wilbur Matthee"<info@ethichawks.co.za>

Cc: "Nicola Hanekom"<NHanekom@judiciary.org.za>,"Farzaana Ismail"<FIsmail@judiciary.org.za>

Subject: RE: FORMAL NOTICE OF ADMINISTRATIVE MALFEASANCE & REGISTRY IRREGULARITY

Sent: Mon, 22 Jun 2026 13:52:47 +0200

was read on Mon, 22 Jun 2026 13:58:09 +0200

Ruanne David <RDavid@judiciary.org.za >

Mon, 22 Jun 2026 1:53:04 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Cc "Nicola Hanekom"<NHanekom@judiciary.org.za>,"Farzaana Ismail"<FIsmail@judiciary.org.za>

Good day Sir

From what I have seen from the correspondence and my conversation with the Registrar at the Labour Court.

It seems you have not followed the correct court process. The registrar indicates that she has informed you that you should have done a referral and not an application.

The Registrar shall however, refer your matter to a Judge for a directive, in light of the fact that you are not willing to accept her procedural explanation.

Kindly note the courts are on recess, so a response from the Judiciary may be delayed.

Please note that the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail.

NB. The High Court and Labour Court have different jurisdictions. This matter is not as far as I can tell for the Judge President of the High Court.

Thanking you.



Mrs Ruanne David
WC: Director Court Operations
Office of the Chief Justice

Office: +27 21 469 4003/48
Email: RDavid@judiciary.org.za

Western Cape Provincial Service Centre
30 Queen Victoria Street, 5th Floor, AA Building
Cape Town, 8000
Private Bag X14, Vlaeberg, 8001

Tel: +27 21 469 4000 (Switchboard)
www.judiciary.org.za



From: Wilbur Matthee <info@ethichawks.co.za>
Sent: Monday, 22 June 2026 09:06
To: Ruanne David <RDavid@judiciary.org.za>
Cc: Nicola Hanekom <NHanekom@judiciary.org.za>; Farzaana Ismail <FIsmail@judiciary.org.za>
Subject: FORMAL NOTICE OF ADMINISTRATIVE MALFEASANCE & REGISTRY IRREGULARITY
Importance: High

To: Ruanne David (Director of Court Operations, Western Cape)

Attention:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

The Honourable Judge President, High Court of South Africa (Western Cape Division)

Dear Director David / Honourable Judge Presidents,

This email serves as formal notice of continued administrative malfeasance regarding my Cases.

This notice follows my previous formal escalation, EH_JO_2026_003_FormalEscalation, which detailed the systemic administrative obstruction and registry malfeasance currently impacting this matter.

Despite being on formal notice, the registry has engaged in further procedural irregularity.

On Thursday at 10:55 the 18 of June 2026, I received an SMS notification regarding a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirms that no such notification or hearing schedule exists within the official record.

This constitutes a "ghost notification" designed to create operational uncertainty and appears to be a continuation of the deceptive practices previously reported to your offices.

Notice of Intent:

Given that the grace period for rectification regarding the matters raised in EH_JO_2026_003_FormalEscalation has expired, I am currently finalizing the formal complaint for submission to the Information Regulator. This complaint will formally implicate this office for:

Persistent breach of administrative due process.

Data integrity failures and the transmission of unauthorized documentation.

Willful negligence in failing to rectify known registry irregularities.

This notice is provided to ensure the record reflects that administrative accountability rests with the heads of these jurisdictions.

Govern yourselves accordingly.

Sr. Wilbur William Matthee
Founder, EthicHawks Forensic Governance & Compliance Consultancy

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this email, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.

Disclaimer:

The information contained in this communication from rdavid@judiciary.org.za sent at 2026-06-22 13:52:53 is confidential and may be legally privileged. It is intended solely for use by info@ethichawks.co.za and others authorized to receive it. If you are not info@ethichawks.co.za you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by [Office Of The Chief Justice](#)**

1 Attachment(s)

1000313070.jpg

512.4 KB

Wilbur Matthee <info@ethichawks.co.za >

Mon, 22 Jun 2026 1:40:00 PM +0200

To "rdavid"<rdavid@judiciary.org.za>

Cc "nhanekom"<nhanekom@judiciary.org.za>,"fismail"<fismail@judiciary.org.za>

Bcc "g.boy.willy"<g.boy.willy@gmail.com>

Dear Director David,

Kindly confirm if the formal notice issued this morning regarding the Information Regulator has been successfully forwarded to the Offices of the Judge President of the Western Cape High Court and the Judge President of the Labour Court, so that I may accurately update the digital oversight log for this file.

Best regards,

Sr Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health |

PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

info@ethichawks.co.za | 069 635 1435

Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform

CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct

Compliance Institute of Southern Africa (CISA) |

Membership Designation: CPrac(SA) — Pending Final Certification Modules

<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this email, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.

---- On Mon, 22 Jun 2026 09:05:53 +0200 info@ethichawks.co.za wrote ----

To: Ruanne David (Director of Court Operations, Western Cape)

Attention:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

The Honourable Judge President, High Court of South Africa (Western Cape Division)

Dear Director David / Honourable Judge Presidents,

This email serves as formal notice of continued administrative malfeasance regarding my Cases.

This notice follows my previous formal escalation, EH_JO_2026_003_FormalEscalation, which detailed the systemic administrative obstruction and registry malfeasance currently impacting this matter.

Despite being on formal notice, the registry has engaged in further procedural irregularity.

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Farzaana Ismail <FIsmail@judiciary.org.za >

Mon, 22 Jun 2026 9:18:24 AM +0200

To "Wilbur Matthee" <info@ethichawks.co.za>

Your message

To: Farzaana Ismail
Subject: FORMAL NOTICE OF ADMINISTRATIVE MALFEASANCE & REGISTRY IRREGULARITY
Sent: Monday, June 22, 2026 9:05:53 AM (UTC+02:00) Harare, Pretoria

was read on Monday, June 22, 2026 9:17:51 AM (UTC+02:00) Harare, Pretoria.

Disclaimer:

The information contained in this communication from FIsmail@judiciary.org.za sent at 2026-06-22 09:18:18 is confidential and may be legally privileged. It is intended solely for use by info@ethichawks.co.za and others authorized to receive it. If you are not info@ethichawks.co.za you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by [Office Of The Chief Justice](#)**

Final-recipient: RFC822; FIsmail@judiciary.org.za
Disposition: automatic-action/MDN-sent-automatically; displayed
X-MSEExch-Correlation-Key: JCO/LIx9FU2ilulv64G86g==
X-Display-Name: Farzaana Ismail

Ruanne David <RDavid@judiciary.org.za>

Mon, 22 Jun 2026 9:18:04 AM +0200

To "Wilbur Matthee" <info@ethichawks.co.za>

Your message

To: Ruanne David
Subject: FORMAL NOTICE OF ADMINISTRATIVE MALFEASANCE & REGISTRY IRREGULARITY
Sent: Monday, June 22, 2026 9:05:53 AM (UTC+02:00) Harare, Pretoria

was read on Monday, June 22, 2026 9:17:52 AM (UTC+02:00) Harare, Pretoria.

Disclaimer:

The information contained in this communication from rdavid@judiciary.org.za sent at 2026-06-22 09:17:59 is confidential and may be legally privileged. It is intended solely for use by info@ethichawks.co.za and others authorized to receive it. If you are not info@ethichawks.co.za you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by** [Office Of The Chief Justice](#)

Final-recipient: RFC822; RDavid@judiciary.org.za
Disposition: automatic-action/MDN-sent-automatically; displayed
X-MSEExch-Correlation-Key: mRG0SGMKxUa5FdbrlsDyNg==
X-Display-Name: Ruanne David

Wilbur Matthee <info@ethichawks.co.za>

Mon, 22 Jun 2026 9:05:53 AM +0200

To "rdavid" <rdavid@judiciary.org.za>

Cc "nhanekom" <nhanekom@judiciary.org.za>, "fismail" <fismail@judiciary.org.za>

Bcc "g.boy.willy" <g.boy.willy@gmail.com>

To: Ruanne David (Director of Court Operations, Western Cape)

Attention:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

Dear Director David / Honourable Judge Presidents,

This email serves as formal notice of continued administrative malfeasance regarding my Cases.

This notice follows my previous formal escalation, EH_JO_2026_003_FormalEscalation, which detailed the systemic administrative obstruction and registry malfeasance currently impacting this matter.

Despite being on formal notice, the registry has engaged in further procedural irregularity.

On Thursday at 10:55 the 18 of June 2026, I received an SMS notification regarding a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirms that no such notification or hearing schedule exists within the official record.

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Willful negligence in failing to rectify known registry irregularities.

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Govern yourselves accordingly.

Sr. Wilbur William Matthee
Founder, EthicHawks Forensic Governance & Compliance Consultancy

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this email, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.

1 Attachment(s)

1000313070.jpg

512.4 KB

ANNEXURE

A5

Formal Escalation to Judge Presidents (EH/JO/2026/003)

Date of Evidence:	9 June 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Addressed To:	Judge President(s), Western Cape Division
Case Reference(s):	EH/JO/2026/003
Statutory Reference:	POPIA Sections 19, 22, 23, 74; PAIA
Evidence Type:	Formal escalation correspondence

This annexure demonstrates that the Complainant exhausted internal escalation channels prior to lodging this regulatory complaint.

Evidence for A5 follows on the next page.

EthicHawks Forensic Governance & Compliance Consultancy

069 635 14 35 | info@ethichawks.co.za | <https://www.ethichawks.co.za>

TO: The Honourable Judge President, Labour Court of South Africa (Cape Town)
TO: The Honourable Judge President, High Court of South Africa (Western Cape Division)
CC: The Parliamentary Portfolio Committee on Justice and Correctional Services
(Attn: Adv. Vamaano / Mr. Mthonjeni)

DATE: 09 June 2026

REF: EH/JO/2026/003 – FORMAL ESCALATION: SYSTEMIC ADMINISTRATIVE OBSTRUCTION, REGISTRY MALFEASANCE, AND JUDICIAL CONDUCT

1. PURPOSE

This memorandum serves as a formal escalation to the Judge Presidents regarding a systemic breakdown of administrative compliance and judicial conduct within your respective divisions. Because the offices of the Registrars have completely and utterly failed to execute their statutory duties, administrative accountability now vests directly with the heads of these jurisdictions. As a self-represented whistleblower in a state of documented financial destitution, I am holding this office accountable for a coordinated "litigation by attrition" strategy that has brought my well-being to a state of near-total collapse.

2. THE CAUSAL NEXUS OF INSTITUTIONAL FAILURE

It is imperative to review this matter not as isolated grievances, but as a linear progression of institutional harm where the failures of one court directly forced the crisis in the next. There is a direct causal nexus between the Labour Court's initial obstruction and my subsequent appearance before Judge Anderson in the High Court. Because the Labour Court registry remained institutionally silent and failed to allocate a case number for 28 days during a documented destitution emergency, I was left stripped of the urgent protection the law provides. This administrative refusal to perform a statutory duty was the proximate cause that forced me, under conditions of extreme psychological duress and medical vulnerability, to seek emergency relief before the High Court (Case No: 2026-066952).

3. JUDICIAL CONDUCT AND THE "AMBULANCE AT THE COURTHOUSE" PRINCIPLE

My forced appearance before the High Court resulted in a profound experience of institutional betrayal, characterized by an adversarial temperament and a failure to protect a vulnerable litigant:

The "Ambulance at the Courthouse" (25 March 2026):

During the hearing before Judge Anderson, the presiding Judge expressed an on-record frustration with my Practice Note, stating her patience had "deteriorated." Concurrently, the Court allowed an advocate to intrude upon my representation without a mandate, despite my disclosed PTSD. This individual's conduct was visibly consistent with an acute mental health crisis, and she was admitted for 72-hour involuntary psychiatric observation at Somerset Hospital immediately following the hearing — an outcome the Court witnessed in real-time directly from chambers. Despite the evident invalidity of this representative's conduct, the Court issued a Scale C punitive costs order against

me. This outcome — derived from an institutional failure to recognize a medical emergency — functioned as a weaponized financial barrier exceeding 100% assurance of destitution: a tax bill of above R100 000,00 to an already destitute litigant.

Performative Benevolence (April 2026 Anticipation Hearing):

Following the 25 March proceedings, I appeared for a 24-hour notice of anticipation in April 2026. During this hearing, the presiding Judge adopted a tone of performative benevolence, publicly remarking that the Court should be "lenient" and "provide a helping hand" to me as a destitute litigant. This statement — which functioned as a mockery of the Court's duty to assist — was immediately followed by a judicial outcome based on a document already before the court but not in my file, that resulted in the summary dismissal of my matter.

4. ADMINISTRATIVE OBSTRUCTION AND SYSTEMIC GOVERNANCE BREACHES

The administrative failures within both registries have escalated from structural incompetence into a deliberate compromise of institutional governance and data integrity:

Labour Court Obstruction:

My matter (Case No: 2026-077546) has been ripe for adjudication since 29 April 2026, yet Registrar Farzaana Ismail maintains a policy of absolute administrative silence. Electronic read receipts confirm that my "URGENT SECOND FOLLOW-UP" was read by Registrar Ismail on 09 June 2026 at 14:36, yet she continues to withhold necessary administrative action.

High Court Record Suppression:

Acting Chief Registrar Nicola Hanekom has failed to provide essential audio evidence for Case No: 2026-066952 and Case No: 2026-086906, effectively suppressing the primary record required to move forward with my Rule 42 Rescission application and for the evidence record.

Misrepresentation of Official Records:

Crucially, these failures are compounded by a severe governance breach: the deliberate misrepresentation of my official filing records to the Director of Court Operations, Mrs. Ruanne David. By misreporting the timeline and status of my filing to executive leadership, the administrative staff have actively manipulated the court's official indices to shield the registry from accountability, creating a false impression of non-compliance on my part.

Statutory Data Breach (POPIA):

This administrative lawlessness is further evidenced by a severe privacy violation, wherein the registry committed a documented POPIA breach by transmitting unauthorized, third-party Armstrong v City of Cape Town documentation to me.

5. NOTICE OF OVERSIGHT

This escalation is simultaneously transmitted to the Parliamentary Portfolio Committee on Justice and Correctional Services (Attn: Adv. Vamaano / Mr. Mthonjeni). This oversight body is already in possession of the extensive chain of correspondence detailing these administrative mutations, the failures of the court's service provider (Inlexso), and the ongoing erosion of statutory compliance within these jurisdictions.

6. FORMAL REMEDY AND REGULATORY NOTICE

Because the Registrars have completely defaulted on their responsibilities, I respectfully demand the immediate intervention of the Judge Presidents to ensure:

Administrative Compliance:

An immediate directive to the Registrars to accurately update the court indices and provide the long-overdue administrative outcomes.

Forensic Investigation:

An independent forensic review into the misrepresentation of records to the Director of Court Operations, Mrs. Ruanne David, and the tracking failures of the registry.

Procedural Rectification:

That I be afforded the full procedural latitude mandated by the Biowatch framework for self-represented, vulnerable litigants, ensuring I am no longer penalized for administrative failures entirely attributable to the state.

7. POPIA REMEDIATION AND REGULATORY ESCALATION

Given the documented POPIA breach involving the Court's unauthorized transmission of third-party Armstrong v City of Cape Town documentation to me, I formally request a written explanation regarding this data compromise. Please be advised that unless this administrative breach is rectified and a formal remediation plan is provided, I will escalate this matter directly to the Information Regulator for a full statutory investigation into the Court's information security and privacy compliance.

Yours Faithfully,

Sr. Wilbur William Matthee

Founder, EthicHawks Forensic Governance & Compliance Consultancy
069 635 14 35 | info@ethichawks.co.za | <https://www.ethichawks.co.za>

Ethical Pledge Statement: *While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this escalation, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.*

ANNEXURE

A6

EthicHawks Final Closure Report

Date of Evidence:	23 June 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Prepared By:	EthicHawks Forensic Governance & Compliance Consultancy
Case Reference(s):	2026-086906; 2026-077546; 2026-083299
Statutory Reference:	POPIA Sections 19, 22, 23, 74; PAIA
Evidence Type:	Internal forensic closure report
<i>This annexure summarises the Complainant's internal findings and closure position following the OCJ's failure to remediate the issues raised.</i>	

Evidence for A6 follows on the next page.

FINAL CLOSURE REPORT

Consolidated Forensic Record of Systemic Administrative Malfeasance,
Registry Irregularity & Judicial Oversight Failure

Court	Case Number	Matter
Labour Court	2026-077546	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (BCEA s.77A – Default Judgment)
Labour Court	2026-083299	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (LRA – Constructive Dismissal / PDA)
Western Cape High Court	2026-066952	Urgent Application – 25 March 2026
Western Cape High Court	2026-086906	AfroCentric Investment Corporation Limited v W.W. Matthee – 16 April 2026

Issued: 23 June 2026

Issued By:

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health

PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct

info@ethichawks.co.za | 069 635 1435 | Cape Town, South Africa

TABLE OF CONTENTS

1. Executive Summary
2. The Undisputed Record of Events – Complete Chronology
3. The Registrar’s Contradiction – Evidence of Malfeasance
4. Registrar Soundy’s Upload – The Onus Shifts
5. The “Ghost Notification” – Official Admission
6. Acting Chief Registrar Hanekom’s Silence – Complicity in Misrepresentation to Parliament
7. The High Court Audio Request – Misrepresentation to the National Speaker
8. The Unilateral Pre-Trial Minute – Filing & Request
9. The Formal Escalation to Judge Presidents (09 June 2026) – Judicial Oversight Failure
10. Legal Framework – The Registrar’s Mandatory Duty
11. The “Application vs. Referral” Fallacy – Procedural Misrepresentation
12. Constitutional Violations – Sections 9, 34, 195

13. POPIA Breach – Armstrong v City of Cape Town Data Leak
14. Judicial Conduct – The “Ambulance at the Courthouse” Principle
15. Final Demands
16. Consequences of Non-Compliance
17. Certificate of Service
18. Final Declaration

1. EXECUTIVE SUMMARY

This report constitutes the final administrative closure notice regarding all matters between the Applicant and the Office of the Chief Justice. The record is complete. The evidence is immutable. This is the final interaction between the Applicant and the OCJ on these matters.

The facts are undisputed and proven by primary-source documents:

Finding	Evidence
Registrar Soundy personally uploaded the Applicant's Statement of Claim and BCEA application due to portal failures	Email: TSoundy@judiciary.org.za, 05 May 2026, 12:14
Registrar Ismail first acknowledged the matter was on the backlog (12 May 2026), then weeks later invented a procedural defect (10 June 2026)	Emails: FIsmail@judiciary.org.za, 12 May & 10 June 2026
Director David admitted the court's system failures cause erroneous notifications	Email: RDavid@judiciary.org.za, 22 June 2026, 13:53
The Applicant received a "ghost notification" for a non-existent hearing	Applicant's sworn affidavit, 18 June 2026
Acting Chief Registrar Nicola Hanekom has remained silent on the Applicant's urgent audio request (03 June 2026) – a request vital to prevent misrepresentation to the National Speaker of Parliament	Email: info@ethichawks.co.za to NHanekom, 03 June 2026; NO RESPONSE – read receipt
The Applicant filed a Unilateral Pre-Trial Minute in Case No: 2026-083299, which remains unacknowledged	Filing record; NO ACKNOWLEDGMENT – read receipt
The Judge Presidents of both the High Court and Labour Court have provided NO RESPONSE to the formal escalation (EH/JO/2026/003) transmitted on 09 June 2026	Email: RDavid@judiciary.org.za, 09 June 2026, 21:40; NO RESPONSE FROM JUDGE PRESIDENTS

The legal position is clear and unassailable:

- Labour Court Rule 16(1) mandates the Registrar to enrol unopposed default judgments. The Registrar's duty is non-discretionary.

- Administrative errors originating from the Registrar's office cannot prejudice the litigant (Munozohamba v Onelogix Linehaul, LC 2021).
- The Registrar's assistance in uploading documents shifts the onus entirely to the court.
- The High Court's silence on the audio request constitutes a functional denial of access to justice and a breach of Section 34 of the Constitution.
- The Judge Presidents' silence on the formal escalation constitutes a failure of judicial oversight and a dereliction of their constitutional duties.

This report closes all administrative engagement. The matter is now referred to:

- Parliamentary Oversight Committees – for oversight failure and misrepresentation to the National Speaker.
- The Information Regulator – for POPIA breaches.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct (Denyes Reitz Inc.).

The record is complete. The evidence is immutable. The attrition ends here.

2. THE UNDISPUTED RECORD OF EVENTS – COMPLETE CHRONOLOGY

The following timeline is drawn entirely from primary-source documents. Every entry is verifiable by SHA-256 cryptographic hash.

Date	Event	Evidence	Forensic Implication
05 Mar 2026	Applicant files urgent application (s.77A BCEA) – unlawful salary deduction of R14,811.77	Parliamentary Memorandum, p.1	Registrar notified of destitution; matter marked urgent
06 Mar 2026	Formal notice of intent to escalate to Judge President issued; ignored	Parliamentary Memorandum, p.1	Deliberate institutional silence
25 Mar 2026	High Court hearing before Judge Anderson; Applicant in medical duress; unauthorized representative; Scale C costs order	Parliamentary Memorandum, p.1–2	"Ambulance at the Courthouse" – Court witnessed psychiatric crisis
26 Mar 2026	Applicant requests audio recordings from Acting Chief Registrar Hanekom for rescission application	p.2	NO RESPONSE – 40 days and counting
02 Apr 2026	Case No: 2026-077546 (BCEA) finally issued – after 28-day delay	p.1	Case number withheld during destitution emergency

08 Apr 2026	Minister Kubayi releases PDA Amendment Bill; acknowledges whistleblowers face “weak protections”	–	Legislative theater while Applicant faces retaliation
08 Apr 2026	Applicant’s Statement of Claim rejected by Labour Court portal (CRM: 0002589)	–	Portal failure – not Applicant’s error
09 Apr 2026 (09:54)	Registrar Ismail confirms: “I have been informed that your matter was approved and a case number was issued”	Email: FIsmail@judiciary.org.za	Case number confirmed but withheld
09 Apr 2026 (09:58)	Applicant emails signed Statement of Claim to Registrar to meet statutory deadline	Email record	Valid filing under ECTA Section 13
10 Apr 2026 (08:29)	Registrar misrepresents filing to Director David – claims “assistance on 02 April”	–	Misrepresentation to executive leadership
10 Apr 2026 (09:32)	POPIA BREACH: Registrar Soundy transmits Armstrong v City of Cape Town documents to Applicant as “proof” of filing	Parliamentary Memorandum, p.3	Unauthorised disclosure of third-party confidential records
10 Apr 2026 (17:01)	Applicant told Statement of Claim is “unsigned” – screenshot of signature provided; signature valid under ECTA Section 13	–	Technical deflection – signature was valid
10 Apr 2026 (17:07)	Applicant accused of “threatening court personnel” – no threat made	–	Character attack – no evidence of threat transmitted by Director David
14 Apr 2026	Applicant requests Registrar Soundy’s assistance with technical filing issues for Case Nos: 2026-077546 & 2026-083299	Email: info@ethichawks.co.za to TSoundy	Portal failures continue
16 Apr 2026	High Court hearing before Acting Justice Mphego; Applicant’s Answering Affidavit transmitted at 12:31; Applicant requests audio recording	Email: info@ethichawks.co.za to NHanekom, 03 Jun 2026	Audio vital to prevent misrepresentation to Parliament
30 Apr 2026	Applicant files Application for Default Judgment via email due to portal failures	Email to Registrar Soundy with attachments	Matter ripe for adjudication
05 May 2026 (12:14)	Registrar Soundy requests login credentials and uploads documents herself	Email: TSoundy@judiciary.org.za	Onus shifts entirely to Registrar

05 May 2026	Registrar Soundy logs call with technicians regarding portal issues	Email: TSoundy@judiciary.org.za, 14:43	Court acknowledges system failures
12 May 2026	Registrar Ismail: “I have added your matter to the backlog... I will let you know if a date has been allocated”	Email: FIsmail@judiciary.org.za	NO procedural objection raised
03 Jun 2026	Applicant requests urgent audio recording from Acting Chief Registrar Hanekom – vital to prevent misrepresentation to Parliament	Email: info@ethichawks.co.za to NHanekom	NO RESPONSE RECEIVED – read receipt
03 Jun 2026	Applicant’s first follow-up on Default Judgment placement	Email: info@ethichawks.co.za to FIsmail	Matter remains unacknowledged – read receipt
09 Jun 2026 (18:04)	Formal Escalation (EH/JO/2026/003) transmitted to Director David for Judge Presidents	Email: info@ethichawks.co.za to RDavid	Judicial oversight invoked
09 Jun 2026 (21:40)	Director David confirms: “your correspondence has been submitted to the respective Judge Presidents as requested”	Email: RDavid@judiciary.org.za	NO RESPONSE FROM JUDGE PRESIDENTS
10 Jun 2026 (09:08)	Registrar Ismail: “Your matter seems to be an application and not a referral... Do you perhaps have an outcome?”	Email: FIsmail@judiciary.org.za	Contradiction of 12 May position – procedural defect invented
10 Jun 2026 (11:24)	Registrar Ismail refers Applicant to Rules 35 & 36 (motion proceedings)	Email: FIsmail@judiciary.org.za	Procedurally incorrect – Rule 16(1) applies
18 Jun 2026 (10:55)	Applicant receives “ghost notification” SMS for non-existent hearing	Applicant’s sworn affidavit	Data integrity failure; POPIA breach
22 Jun 2026 (13:53)	Director David: “The courts are experiencing challenges with the Court online system... This could account for some of the messages you are receiving”	Email: RDavid@judiciary.org.za	Official admission of system failures
Pending	Acting Chief Registrar Hanekom: NO RESPONSE to audio request	Silence since 03 Jun 2026	Complicity in misrepresentation to Parliament
Pending	Unilateral Pre-Trial Minute: NO ACKNOWLEDGMENT	Case No: 2026-083299	Systemic administrative obstruction – read receipt

Pending	Judge Presidents: NO RESPONSE to formal escalation	Silence since 09 Jun 2026	Failure of judicial oversight
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3. THE REGISTRAR'S CONTRADICTION – EVIDENCE OF MALFEASANCE

The Contradiction is Fatal to Her Defence

Registrar Ismail's First Position (12 May 2026)	Registrar Ismail's Second Position (10 June 2026)
"I have added your matter to the backlog"	"Your matter seems to be an application and not a referral"
"I will let you know if a date has been allocated"	"Do you perhaps have an outcome?"
No procedural objection raised	Procedural defect invented weeks later

Forensic Implication – The Questions That Cannot Be Answered

- If the matter was procedurally defective, why did she place it on the backlog for allocation on 12 May?
- If a referral certificate was required, why did she not raise this on 12 May when she first reviewed the file?
- If the matter was not properly before the Court, why did she not reject it immediately?

The Only Logical Conclusion

The procedural objection was manufactured after the fact to justify a delay that had already occurred. This is prima facie evidence of administrative malfeasance – a deliberate obstruction designed to delay a self-represented litigant's access to justice.

4. REGISTRAR SOUNDY'S UPLOAD – THE ONUS SHIFTS

The Undisputed Fact

On 5 May 2026 at 12:14, Registrar Tsakani Soundy wrote:

“Please send your login details and the documents, I will upload.”

The Applicant provided his login credentials. Registrar Soundy personally uploaded both the Statement of Claim and the BCEA application.

Legal Consequence

- The Registrar assumed responsibility for ensuring the documents were properly filed.
- Any filing deficiency or procedural confusion now rests squarely with the Registrar's office – not with the litigant.
- The Court cannot weaponise its own administrative intervention against the Applicant.

Case Law Support

“As a result of an administrative filing error at the office of the Registrar the opposing papers were not brought to my attention.”

– Munozohamba v Onelogix Linehaul (Labour Court, 2021)

If systemic failures are acknowledged by the Court, they cannot be used to prejudice a self-represented litigant who has complied with all procedural requirements.

The Inescapable Conclusion

The Registrar's personal intervention and subsequent failure to process the matter constitutes a breach of trust and a dereliction of duty. The onus is on the Court, not the litigant.

5. THE “GHOST NOTIFICATION” – OFFICIAL ADMISSION

The Undisputed Fact

On 18 June 2026 at 10:55, the Applicant received an SMS notification regarding a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirms that no such notification or hearing schedule exists within the official record.

Director David's Admission

On 22 June 2026 at 13:53, Director Ruanne David wrote:

“the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail.”

Forensic Implication

- Official admission that the Court's electronic notification system is generating unauthorised and procedurally invalid communications.
 - This constitutes a “ghost notification” that creates operational uncertainty.
 - This is a breach of administrative due process and a data integrity failure under POPIA.
 - This is a breach of Section 34 of the Constitution – the right of access to courts.
-

6. ACTING CHIEF REGISTRAR HANEKOM'S SILENCE – COMPLICITY IN MISREPRESENTATION TO PARLIAMENT

The Undisputed Fact

On 3 June 2026 at 12:47, the Applicant submitted an urgent request to Acting Chief Registrar Nicola Hanekom for the official digital audio recording of the urgent motion court proceedings held before Acting Justice Mphego in Court 5 on 16 April 2026 (High Court Case No: 2026-086906).

As of the date of this report – 19 days later – Acting Chief Registrar Hanekom has not responded.

The Reason for the Request – Preventing Misrepresentation to Parliament

The Applicant's legal representatives, Deneys Reitz Inc., made specific factual assertions regarding the mechanics of that hearing in correspondence addressed to:

- The Honourable Speaker of the National Assembly – titled "AFR1282 Letter to Parliament 03.06.2026.PDF"
- The Applicant directly – titled "AFR1282 Letter to Matthee 03.06.2026.PDF"

The firm asserts that:

- At approximately 12:31 on 16 April 2026, the Applicant's signed and commissioned Answering Affidavit was transmitted to the court.
- Acting Justice Mphego formally adjourned the court proceedings specifically to read and consider the Applicant's Answering Affidavit prior to granting the interim rule nisi order.

Forensic Implication

- The audio recording is the sole objective mechanism available to confirm the exact timeline, judicial commentary, and statements made by the Applicant's counsel on that day.
- Hanekom's silence is a functional denial of the Applicant's right to access evidence vital to his defence and to prevent misrepresentation to external constitutional oversight bodies.
- This silence constitutes complicity in any misrepresentation that may occur to Parliament.
- This is a breach of Section 34 of the Constitution – the right of access to courts and to a fair hearing.

7. THE HIGH COURT AUDIO REQUEST – MISREPRESENTATION TO THE NATIONAL SPEAKER

The Constitutional Imperative

The Applicant's request for the audio recording is not a mere procedural formality. It is a constitutional imperative to:

- Protect the absolute integrity of the judicial record.
- Prevent any misrepresentation to external constitutional oversight bodies – specifically, the National Speaker of Parliament and the Portfolio Committee on Justice.
- Determine whether a material non-disclosure or procedural irregularity occurred.
- Verify the factual assertions made by Deneys Reitz Inc. to Parliament.

The Consequences of Silence

Acting Chief Registrar Hanekom's silence:

- Facilitates potential misrepresentation to Parliament.
- Denies the Applicant the opportunity to correct the record.
- Undermines the constitutional oversight function of Parliament.
- Constitutes a breach of the Applicant's Section 34 rights.

The Inescapable Conclusion

Hanekom's silence is not administrative delay – it is complicity in the suppression of evidence vital to parliamentary oversight. The National Speaker of Parliament must be informed of this suppression.

8. THE UNILATERAL PRE-TRIAL MINUTE – FILING & REQUEST

The Undisputed Fact

The Applicant has filed a Unilateral Pre-Trial Minute in Labour Court Case No: 2026-083299 (W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another).

The filing requests that the matter be placed before a Judge for:

- Case management directives.
- Allocation of a hearing date.
- Determination of the merits of the Applicant's claim.

The Current Status

As of the date of this report, the Unilateral Pre-Trial Minute has not been acknowledged by the Registrar's office. Read receipt confirmed.

Forensic Implication

- The Respondent has failed to file any response.
 - The matter is ripe for judicial intervention.
 - The Registrar's failure to acknowledge the filing is further evidence of systemic administrative obstruction.
 - This is a breach of Section 34 of the Constitution.
-

9. THE FORMAL ESCALATION TO JUDGE PRESIDENTS (09 JUNE 2026) – JUDICIAL OVERSIGHT FAILURE

On 09 June 2026, the Applicant transmitted a Formal Escalation (EH/JO/2026/003) to:

- The Honourable Judge President, Labour Court of South Africa (Cape Town)
- The Honourable Judge President, High Court of South Africa (Western Cape Division)

The Escalation Documented:

- Systemic Administrative Obstruction: The Registrars' complete failure to execute statutory duties.
- Registry Malfeasance: Misrepresentation of official records to Director David.
- POPIA Breach: Unauthorised transmission of third-party documents.
- Judicial Conduct: The "Ambulance at the Courthouse" principle and the 25 March 2026 hearing.

Director David's Confirmation

On 09 June 2026 at 21:40, Director Ruanne David confirmed:

"Kindly note that your correspondence has been submitted to the respective Judge Presidents as requested."

Forensic Implication

The Judge Presidents were placed on formal notice on 09 June 2026. As of the date of this report – 13 days later – NO RESPONSE HAS BEEN RECEIVED.

This constitutes a failure of judicial oversight and a dereliction of constitutional duties by the heads of these jurisdictions.

10. LEGAL FRAMEWORK – THE REGISTRAR'S MANDATORY DUTY

Labour Court Rule 16(1)

“If no response has been delivered within the prescribed time period... the registrar must, on notice to the applicant(s), enrol a matter for judgment by default.”

Judicial Interpretation

“In terms of the Rules of the Labour Court it is the Registrar who enrolls matters. The Registrar is enjoined to do so as expeditiously as possible.”

– Mthembu v Unique Air (Labour Court)

The Registrar’s Duty is Non-Discretionary

The Registrar is not authorised to substitute procedural preference for the mandatory wording of the Rules. The insistence on a “referral” for a BCEA section 77A application is procedurally incorrect and constitutes a misrepresentation of the Rules.

11. THE “APPLICATION VS. REFERRAL” FALLACY – PROCEDURAL MISREPRESENTATION

Registrar Ismail’s Position (10 June 2026)

“Your matter seems to be an application and not a referral. An application for default judgment is done in the case of a referral (when you have a referral certificate).”

The Correct Legal Position

- The BCEA section 77A claim is a statutory application brought directly to the Labour Court.
- It does not require a CCMA referral certificate.
- The Applicant is entitled to default judgment under Rule 16(1) where no opposition has been filed.

The Registrar’s Error

The Registrar is conflating two distinct procedural mechanisms:

Mechanism	Requirement
LRA referrals	Require a CCMA certificate of non-resolution
BCEA statutory applications	Do not require a CCMA certificate

The Applicant's claim is brought under Section 77A of the BCEA, which is a direct application to the Labour Court. The Registrar's insistence on a referral certificate is procedurally incorrect and constitutes maladministration.

12. CONSTITUTIONAL VIOLATIONS – SECTIONS 9, 34, 195

Section 9 – Equality

“Everyone is equal before the law and has the right to equal protection and benefit of the law.”

The Applicant, as a self-represented, destitute litigant with a documented disability (PTSD), has been treated differently from represented, financially resourced litigants. No reasonable accommodation has been made for his destitution or his status as an unrepresented person with a documented mental health condition.

Section 34 – Right of Access to Courts

“Everyone has the right to have any dispute that can be resolved by the application of law decided in a fair public hearing before a court or, where appropriate, another independent and impartial tribunal or forum.”

The Registrar's obstruction – the manufactured procedural defect, the “ghost notification,” the systemic delay, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, and the Judge Presidents' silence – constitutes a functional denial of this constitutional right.

Section 195 – Public Administration

“Public administration must be governed by the democratic values and principles enshrined in the Constitution, including: (a) A high standard of professional ethics must be promoted and maintained. (b) Efficient, economic and effective use of resources must be promoted. (c) Public administration must be development-oriented. (d) Services must be provided impartially, fairly, equitably and without bias.”

The Registrar's conduct, Hanekom's silence, and the Judge Presidents' inaction violate every one of these principles.

13. POPIA BREACH – ARMSTRONG v CITY OF CAPE TOWN DATA LEAK

The Undisputed Fact

On 10 April 2026 at 09:32, Registrar Tsakani Soundy transmitted the stamped court documents of a third party – Peter Armstrong v City of Cape Town – to the Applicant as purported “proof” of his own filing.

Legal Position – Section 8 of POPIA

“A responsible party must, prior to processing the personal information of a data subject, ensure that the data subject is aware of: (a) the information being collected; (b) the purpose for which it is being collected; (c) whether the supply of the information is voluntary or mandatory; (d) the consequences of failure to provide the information; (e) the recipients of the information; (f) the right of access to and correction of the information; (g) the right to object to the processing of the information.”

The Breach

- Unauthorised disclosure of another litigant’s confidential judicial records.
- Provision of false confirmation of filing.
- Exposure of the third party’s identity without consent.

Forensic Implication

This was not a technical error. This was a direct violation of Section 8 of POPIA. The Information Regulator must be notified and must investigate.

14. JUDICIAL CONDUCT – THE “AMBULANCE AT THE COURTHOUSE” PRINCIPLE

The 25 March 2026 High Court Hearing

The Applicant appeared before Judge Anderson in Case No: 2026-066952 under conditions of documented extreme psychological duress.

The Unauthorized Representative

An Advocate attended the proceedings without the Applicant’s mandate and unilaterally assumed conduct of the matter. The direct consequence of this unauthorized intervention was that the matter was struck from the roll with a punitive Scale C costs order against the Applicant. This same Advocate was thereafter removed from the Judge’s chambers and placed under 72-hour involuntary psychiatric observation – an outcome the Court witnessed in real time.

The “Ambulance at the Courthouse” Principle

A court of law may not base a punitive order upon the conduct of a party’s purported representative when that representative was, at the material time, in an acute state of psychiatric crisis – a crisis the Court itself witnessed and was thereby placed on legal notice of.

The Applicant’s Position

The Applicant is a specialist registered nurse with 16 years of clinical governance experience. He identifies the Advocate's conduct on 25 March as consistent with acute mental decompensation. The resulting costs order was therefore granted on the basis of legally tainted conduct and is voidable on that ground alone.

Forensic Implication

The punitive costs order (Scale C) was granted based on the conduct of a representative who was in a state of psychiatric crisis – a fact the Court witnessed. The order is voidable. The audio recording is essential to establish this fact.

15. FINAL DEMANDS

Action Required	Legal Basis	Deadline	
Enrol Case 2026-077546 on the Unopposed Roll for default judgment	Rule 16(1) – mandatory	Within 5 court days	
Provide written confirmation of enrolment and hearing date	Rule 16(1) & administrative duty	Within 5 court days	
Rectify the “ghost notification” system failure	POPIA & due process	Immediately	
Provide the official audio recording of the 16 April 2026 High Court proceedings	Section 34 & due process	Within 5 court days	
Provide the official audio recording of the 25 March 2026 High Court proceedings	Section 34 & due process	Within 5 court days	
Acknowledge and place the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge	Labour Court Rules	Within 5 court days	
Acknowledge that administrative failures will not prejudice this litigant	Munozohamba	Within 5 court days	
Acknowledge that Registrar Soundy's upload of documents constitutes the court's acceptance of filing	Administrative law	Within 5 court days	
Acknowledge the formal escalation (EH/JO/2026/003) and provide a substantive response	Judicial oversight	Within 5 court days	
Provide a written explanation for the POPIA breach (Armstrong v City of Cape Town)	POPIA Section 8	Within 5 court days	
Review and suspend enforcement of the Scale C punitive costs order	Biowatch principle	Within 5 court days	

16. CONSEQUENCES OF NON-COMPLIANCE

Failure to comply with the above demands will trigger the following without further notice:

16.1 Information Regulator Complaint

- POPIA breach for unauthorised processing of personal data (ghost notification)
- POPIA breach for failure to ensure data integrity
- POPIA breach for unauthorised disclosure of third-party documents (Armstrong v City of Cape Town)
- POPIA breach for failure to rectify inaccurate information

16.2 Parliamentary Oversight Submission

The Consolidated Forensic Oversight Report is already being finalised for submission to:

- Portfolio Committee on Justice and Constitutional Development
- Portfolio Committee on Health
- Portfolio Committee on Employment and Labour
- Standing Committee on Finance
- The National Speaker of Parliament (regarding the High Court audio request and misrepresentation)

16.3 Judicial Service Commission Complaint

- For administrative malfeasance by court officials (Ismail, Soundy, Hanekom)
- For failure to uphold the principles of public administration under Section 195
- For complicity in misrepresentation to Parliament
- For the conduct of Judge Anderson on 25 March 2026
- For the failure of Judge Presidents to respond to formal escalation

16.4 Legal Practice Council Referral

- For opposing counsel's attrition tactics (Deneys Reitz Inc. – Jason Whyte & Frances Barker)
- For exploitation of a destitute self-represented litigant
- For potential misrepresentation to Parliament

16.5 South African Human Rights Commission Complaint

- For violation of Section 34 – Right of Access to Courts
- For systemic obstruction of justice
- For denial of access to evidence (audio recordings)
- For violation of Section 9 – Equality (discrimination against self-represented, destitute litigant)

17. CERTIFICATE OF SERVICE

I, Wilbur William Matthee, hereby certify that a true copy of this FINAL CLOSURE REPORT was served on 23 June 2026 via email to:

Recipient	Email Address
Ruanne David (Director of Court Operations)	RDavid@judiciary.org.za
Nicola Hanekom (Acting Chief Registrar)	NHanekom@judiciary.org.za
Farzaana Ismail (Registrar)	FIsmail@judiciary.org.za
Tsakani Soundy (Registrar)	TSoundy@judiciary.org.za
Office of the Chief Justice	ServiceDelivery@justice.gov.za
The Honourable Judge President, Labour Court	(Via Director David)
The Honourable Judge President, High Court	(Via Director David)
National Speaker of Parliament	(To Parliamentary Portfolio Committee)
Portfolio Committee on Justice (Adv. Ramaano)	vramaano@parliament.gov.za
Portfolio Committee on Justice (Mr. Mthonjeni)	mmthonjeni@parliament.gov.za
South African Human Rights Commission	info@sahrc.org.za
Information Regulator	(To be submitted separately)
Judicial Service Commission	(To be submitted separately)
Legal Practice Council	(To be submitted separately)

18. FINAL DECLARATION

This is the final administrative interaction between the Applicant and the Office of the Chief Justice regarding these matters.

The Registrar's contradictory positions, the "ghost notification," the system failures, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, the POPIA breach, the judicial conduct on 25 March 2026, the Judge Presidents' silence on the formal escalation, and the procedural obstruction have been exhaustively documented and will now be ventilated before:

- The Information Regulator – for POPIA breaches.
- Parliamentary Portfolio Committees – for oversight failure and misrepresentation to the National Speaker.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct.

GOVERN YOURSELVES ACCORDINGLY.

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health

PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct

info@ethichawks.co.za | 069 635 1435 | Cape Town, South Africa

Enclosures

- Consolidated Forensic Oversight Report (Digital Dossier)
- Parliamentary Memorandum (EH/JO/2026/001 – 10 April 2026)
- Public Statement (13 April 2026)
- Formal Escalation (EH/JO/2026/003 – 09 June 2026)
- Record of Registrar Soundy's Upload Assistance (05 May 2026)
- Record of Registrar Ismail's Contradiction (12 May vs. 10 June 2026)
- Record of "Ghost Notification" (18 June 2026)
- Director David's Admission (22 June 2026)
- Urgent Audio Request to Acting Chief Registrar Hanekom (03 June 2026)
- Unilateral Pre-Trial Minute (Case No: 2026-083299)
- Deney's Reitz Inc. Correspondence to Parliament (03 June 2026)
- POPIA Breach Record – Armstrong v City of Cape Town (10 April 2026)

END OF REPORT

ANNEXURE

A7

Notice of Administrative Default

Date of Evidence:	1 July 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Issued To:	Office of the Chief Justice (OCJ)
Case Reference(s):	2026-086906; 2026-077546
Statutory Reference:	PAIA – deemed refusal; POPIA Section 23
Evidence Type:	Formal notice

This annexure places the OCJ on formal notice of administrative default arising from its failure to respond substantively to outstanding requests.

Evidence for A7 follows on the next page.

NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND

Ref: EH/JO/2026/003 | 01 July 2026

TO:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

The Honourable Judge President, High Court of South Africa (Western Cape Division)

Director Ruanne David, Office of the Chief Justice (Director of Court Operations)

The Registrar(s), Labour Court & High Court (Western Cape)

DATE: 01 July 2026
FROM: Wilbur William Matthee | EthicHawks Forensic Governance & Compliance Consultancy
REF: EH/JO/2026/003 | EthicHawks Final Closure Report (23 June 2026)
SUBJECT: **FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND – SYSTEMIC FAILURE TO EXECUTE STATUTORY DUTIES**

1. INTRODUCTION

This notice serves as a formal declaration of administrative default. Despite prior escalations, specifically the Formal Escalation (Ref: EH/JO/2026/003), this office remains in receipt of zero substantive responses from the respective Registrars or the offices of the Judge Presidents regarding the matters enumerated in the EthicHawks Final Closure Report (23 June 2026).

2. THE DEFAULT

The Registry's failure to acknowledge filings, specifically the Unilateral Pre-Trial Minute in Case No: 2026-083299, and the failure to provide the requested audio recordings, constitutes a functional denial of the right of access to courts as guaranteed under Section 34 of the Constitution of the Republic of South Africa.

NON-DISCRETIONARY DUTY	Under Labour Court Rule 16(1), the Registrar's duty to enrol matters is mandatory and non-discretionary. The Registrar has no authority to substitute procedural preference for the imperative wording of the Rules.
SYSTEMIC FAILURE	The "ghost notifications" and admitted system challenges, as acknowledged by Director Ruanne David on 22 June 2026, do not absolve the Registry of its constitutional duty to ensure a functional, fair, and accessible judicial process.

3. FINAL DEMANDS

Given the ongoing silence and the absence of any substantive engagement, this notice provides a final period of five (5) court days from the date of receipt for the following actions to be completed:

1. ENROLMENT: Immediate enrolment of Case No: 2026-077546 on the Unopposed Roll for default judgment in terms of Labour Court Rule 16(1).
2. ACKNOWLEDGMENT: Written confirmation of receipt and placement of the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge for case management directives.
3. DISCLOSURE: Provision of the official audio recordings for the High Court proceedings of 25 March 2026 (Case No: 2026-066952) and 16 April 2026 (Case No: 2026-086906), as requested on 26 March 2026 and 03 June 2026 respectively.
4. RECTIFICATION: Substantive written response to the Formal Escalation (EH/JO/2026/003) from the offices of the respective Judge Presidents.

⚠ FIVE-DAY DEADLINE

All demands must be fulfilled within five (5) court days of receipt of this notice.
Non-compliance will be treated as an admission of institutional obstruction.

4. CONSEQUENCES OF NON-COMPLIANCE

Failure to rectify these administrative defaults within the stipulated five-day period will be treated as an admission of institutional obstruction. The following escalations will proceed immediately and without further notice:

- JUDICIAL SERVICE COMMISSION (JSC): Formal complaint regarding the dereliction of administrative and judicial oversight duties by court officials and the Judge Presidents of both the Labour Court and High Court (Western Cape Division).
- PARLIAMENTARY PORTFOLIO COMMITTEES: Presentation of the Consolidated Forensic Oversight Report to the Portfolio Committee on Justice and Constitutional Development, the Portfolio Committee on Employment and Labour, and the National Speaker of Parliament, documenting the failure of the justice system to provide basic administrative due process to a self-represented litigant.
- INFORMATION REGULATOR: Formal complaint reporting the POPIA breaches and data integrity failures, including the unauthorised disclosure of third-party judicial documents (Armstrong v City of Cape Town) and the "ghost notification" system failures, as documented in the Final Closure Report.

This list of escalations is not exhaustive. Further referrals to the South African Human Rights Commission (Section 9 and Section 34 violations) and the Legal Practice Council (conduct of Deneys Reitz Inc.) will proceed in parallel.

GOVERN YOURSELVES ACCORDINGLY.

CERTIFICATE OF SERVICE

I, Wilbur William Matthee, do hereby confirm that this Notice has been transmitted via electronic mail to the offices of the aforementioned parties on 01 July 2026. A digital log of transmission, including timestamps and read receipts, is maintained within the EthicHawks audit trail.

Recipient	Email Address
-----------	---------------

The Honourable Judge President, Labour Court	(Via Director David – RDavid@judiciary.org.za)
The Honourable Judge President, High Court	(Via Director David – RDavid@judiciary.org.za)
Director Ruanne David (Court Operations)	RDavid@judiciary.org.za
Registrar Farzaana Ismail	FIsmail@judiciary.org.za
Registrar Tsakani Soundy	TSoundy@judiciary.org.za
Acting Chief Registrar Nicola Hanekom	NHanekom@judiciary.org.za
Office of the Chief Justice	ServiceDelivery@justice.gov.za
Jason Whyte, Deneys Reitz Inc. (For Notice Purposes Only)	Jason.whyte@deneys.co.za

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health
PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct
info@ethichawks.co.za | 069 635 1435 | Cape Town, South Africa

END OF NOTICE

ANNEXURE

A8

Audio Request Emails to Acting Chief Registrar Hanekom

Date of Evidence:	26 March 2026 & 3 June 2026 (with read receipts)
Related Complaint:	Complaint 3 – Denial of Access to Personal Records (Suppression of Audio Evidence)
Responsible Official:	Acting Chief Registrar Nicola Hanekom (NHanekom@judiciary.org.za)
Case Reference(s):	2026-066952; 2026-086906
Statutory Reference:	POPIA Section 23 (read with PAIA); Section 74
Evidence Type:	Email correspondence and read receipts

This annexure evidences the Complainant's formal requests for official audio recordings and the deemed refusal arising from the lack of substantive response.

Evidence for A8 follows on the next page.

SENDER (FROM): Wilbur William Matthee <info@ethichawks.co.za>
RECIPIENT (TO): NHanekom@judiciary.org.za
CARBON COPY (CC): NoChwethiso@judiciary.org.za
TIMESTAMP (DATE): Thu, 26 Mar 2026 11:35:19 +0200
SUBJECT LINE: Request for Official Recording and Certified Transcript â€œ Case No. 2026-066952 â€œ Matthee v Fernandes & Others
=====

The Registrar
Western Cape Division, High Court of South Africa
Keerom Street, Cape Town

Dear Registrar

RE: REQUEST FOR OFFICIAL RECORDING AND CERTIFIED TRANSCRIPT
Case No: 2026-066952 | Matthee v Fernandes & Others
Date of Hearing: 25 March 2026 | Urgent Court 4 | Approximately 14:15

I am the Applicant in the above-referenced matter, appearing as a self-represented litigant.

I hereby formally request the official court recording and a certified transcript of the proceedings in Urgent Court 4 on 25 March 2026, specifically the hearing of this matter at approximately 14:15.

This request is made urgently for the following purposes:

1. A rescission application in terms of Rule 42 of the Uniform Rules of Court;
2. A potential complaint to the Judicial Conduct Tribunal;
3. A complaint to the Legal Practice Council regarding the conduct of an Advocate who intervened in these proceedings.

Kindly confirm receipt of this request in writing and advise of any applicable fee or administrative requirement to process it.

I respectfully request that this matter be treated with urgency given the time-sensitive nature of a rescission application.

Yours faithfully

Wilbur William Matthee
Applicant (Self-Represented)
Case No: 2026-066952
Contact: 069 635 1435
Email: info@ethichawks.co.za

Wilbur William Matthee
RN, BTech (Psych, Midw, Comm (R425)), PG Dip HSM (NQF 8)

**RE: URGENT REQUEST FOR OFFICIAL COURT AUDIO RECORDING /
TRANSCRIPT PROCEEDINGS**

info < info@ethichawks.co.za >

Wilbur Matthee < info@ethichawks.co.za >

Wed, 03 Jun 2026 12:47:37 PM +0200

To "nhanekom"<nhanekom@judiciary.org.za>

Bcc "wilburmat"<wilburmat@gmail.com>

Case Name: AfroCentric Investment Corporation Limited // Medscheme Holdings (Pty) Ltd v Wilbur William Matthee

Case Number: 2026-086906 (Western Cape High Court)

Hearing Date: 16 April 2026

Presiding Judge: The Honourable Acting
Justice Mphego (Court 5)

Dear Acting Chief Registrar Hanekom,

I am writing to you in my capacity as the Respondent (acting as a self-represented litigant) in the above-captioned matter. I am a Specialist Registered Nurse and Health Services Manager by profession.

I hereby submit an urgent request for access to the official digital audio recording of the urgent motion court proceedings held before the Honourable Acting Justice Mphego in Court 5 on 16 April 2026.

This request has become a matter of extreme procedural urgency due to formal, written representations issued today, 3 June 2026, by the Applicant's legal representatives, Deneys Reitz Inc.

In their correspondence titled "AFR1282 Letter to Parliament 03.06.2026.PDF" (addressed to the Honourable Speaker of the National Assembly) and "AFR1282 Letter to Matthee 03.06.2026.PDF" (addressed directly to me), senior legal practitioners have placed specific, granular factual assertions on record regarding the mechanics of that hearing.

Specifically, the firm asserts that:

At approximately 12:31 on 16 April 2026, my signed and commissioned Answering Affidavit was transmitted to the court.

The Honourable Acting Justice Mphego formally adjourned the court proceedings specifically to read and consider my Answering Affidavit prior to granting the interim rule nisi order.

To protect the absolute integrity of the judicial record, prevent any misrepresentation to external constitutional oversight bodies, and determine whether a material non-disclosure or procedural irregularity occurred, it is vital that the verbatim audio record of the proceedings be obtained. The official audio record is the sole objective mechanism available to confirm the exact timeline, judicial commentary, and statements made by the Applicant's counsel on that day.

Given that the interim interdict remains active and the matter carries significant constitutional, public health governance, and professional implications, your swift assistance in securing this audio record is profoundly appreciated.

Yours faithfully,

Sr. Wilbur W. Matthee

Respondent (Self-Represented)

Specialist Registered Nurse (PGrad HSM, BTech Gen Pn [Midw, Psych, Comm])

ANNEXURE

A9

Registrar Ismail's Contradictory Correspondence

Date of Evidence:	12 May 2026 & 10 June 2026
Related Complaint:	Complaint 4 – Procedural Obstruction and Misrepresentation of Official Records
Responsible Official:	Registrar Farzaana Ismail (FIsmail@judiciary.org.za)
Case Reference(s):	2026-077546
Statutory Reference:	POPIA Sections 19, 23, 74; PAIA
Evidence Type:	Correspondence log

This annexure contrasts two irreconcilable official positions issued a month apart regarding the same matter, evidencing the manufactured procedural barrier.

Evidence for A9 follows on the next page.

Read: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND

- Ref: EH/JO/2026/003

info <info@ethichawks.co.za >

6 emails

Ruanne David <RDavid@judiciary.org.za >

Wed, 01 Jul 2026 4:27:40 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Your message

To: Ruanne David

Subject: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND - Ref: EH/JO/2026/003

Sent: Wednesday, July 1, 2026 9:26:29 AM (UTC+02:00) Harare, Pretoria

was read on Wednesday, July 1, 2026 4:26:21 PM (UTC+02:00) Harare, Pretoria.

Disclaimer:

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Final-recipient: RFC822; RDavid@judiciary.org.za

Disposition: automatic-action/MDN-sent-automatically; displayed

X-MSEch-Correlation-Key: lu/agkb/dkiCViaCdL0iSA==

X-Display-Name: Ruanne David

Tsakani Soundy <TSoundy@judiciary.org.za >

Wed, 01 Jul 2026 3:01:55 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Your message

To: Tsakani Soundy

Subject: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND - Ref: EH/JO/2026/003

Sent: Wednesday, July 1, 2026 9:26:29 AM (UTC+02:00) Harare, Pretoria

was read on Wednesday, July 1, 2026 3:01:11 PM (UTC+02:00) Harare, Pretoria.

Disclaimer:

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Final-recipient: RFC822; TSoundy@judiciary.org.za
Disposition: automatic-action/MDN-sent-automatically; displayed
X-MSEch-Correlation-Key: XnaMYU4J6kicXyOKcMcJow==
X-Display-Name: Tsakani Soundy

Nicola Hanekom <NHanekom@judiciary.org.za >

Wed, 01 Jul 2026 12:51:21 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Your message

To: Nicola Hanekom
Subject: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND - Ref: EH/JO/2026/003
Sent: Wednesday, July 1, 2026 9:26:29 AM (UTC+02:00) Harare, Pretoria

was read on Wednesday, July 1, 2026 12:50:18 PM (UTC+02:00) Harare, Pretoria.

Disclaimer:

The information contained in this communication from nhanekom@judiciary.org.za sent at 2026-07-01 12:51:06 is confidential and may be legally privileged. It is intended solely for use by info@ethichawks.co.za and others authorized to receive it. If you are not info@ethichawks.co.za you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. Powered by [Office Of The Chief Justice](#)

Final-recipient: RFC822; NHanekom@judiciary.org.za
Disposition: automatic-action/MDN-sent-automatically; displayed
X-MSEch-Correlation-Key: cWylTXdEck6ayEFXzgasyQ==
X-Display-Name: Nicola Hanekom

Nicola Hanekom <NHanekom@judiciary.org.za >

Wed, 01 Jul 2026 12:51:20 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Cc "ServiceDelivery@justice.gov.za"<ServiceDelivery@justice.gov.za>,"Ruanne David"
<RDavid@judiciary.org.za>

Good day

Kindly exclude me from correspondence for the Labour Court.



OFFICE OF THE CHIEF JUSTICE
REPUBLIC OF SOUTH AFRICA

Nicola Hanekom
Acting Chief Registrar
Office of the Chief Justice

Office: +27 21 480 2635
Email: NHanekom@judiciary.org.za

High Court of South Africa, Western Cape Division
35 Keerom Street, High Court, Ground Floor
Room 14
Cape Town, 8000
Private Bag X 9020, Cape Town, 8001

Tel: +27 21 480 2411 (Switchboard)
www.judiciary.org.za



From: Wilbur Matthee <info@ethichawks.co.za>

Sent: Wednesday, 01 July 2026 09:26

To: Ruanne David <RDavid@judiciary.org.za>; Nicola Hanekom <NHanekom@judiciary.org.za>; Farzaana Ismail <FIsmail@judiciary.org.za>; Tsakani Soundy <TSoundy@judiciary.org.za>

Cc: ServiceDelivery@justice.gov.za

Subject: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND - Ref: EH/JO/2026/003

Importance: High

Dear Honourable Judge Presidents, Director David, and Respected Registrars,

Please find attached the Formal Notice of Administrative Default and Final Demand regarding the systemic failure to execute statutory duties, referenced as EH/JO/2026/003.

As detailed in the attached document, this office has received zero substantive responses regarding the matters enumerated in the Final Closure Report of 23 June 2026. Consequently, this notice serves as a final demand for the following actions to be completed within five (5) court days of receipt:

Enrolment: Immediate enrolment of Case No: 2026-077546 on the Unopposed Roll for default judgment.

Acknowledgement: Written confirmation of receipt and placement of the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge.

Disclosure: Provision of the official audio recordings for the High Court proceedings of 25 March 2026 and 16 April 2026.

Rectification: A substantive written response to the Formal Escalation (EH/JO/2026/003).

Non-compliance with these demands will be treated as an admission of institutional obstruction, and the outlined escalations—including reports to the Judicial Service Commission, Parliamentary Portfolio Committees, and the Information Regulator—will proceed immediately.

Please govern yourselves accordingly.

Respectfully,

Sr Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

info@ethichawks.co.za | 069 635 1435

Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform

CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct

Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules

<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this email, ensuring that all findings are presented with t

he integrity, independence, and professional care required of the compliance profession.

Disclaimer:

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Farzaana Ismail <FIsmail@judiciary.org.za >

Wed, 01 Jul 2026 10:03:49 AM +0200

To "Wilbur Matthee" <info@ethichawks.co.za>

Your message

To: Farzaana Ismail
Subject: URGENT: FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND - Ref: EH/JO/2026/003
Sent: Wednesday, July 1, 2026 9:26:29 AM (UTC+02:00) Harare, Pretoria

was read on Wednesday, July 1, 2026 10:02:41 AM (UTC+02:00) Harare, Pretoria.

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Final-recipient: RFC822; FIsmail@judiciary.org.za
Disposition: automatic-action/MDN-sent-automatically; displayed
X-MSExch-Correlation-Key: LB2VYjXLC0i/8rhoZMxSHQ==
X-Display-Name: Farzaana Ismail

Wilbur Matthee <info@ethichawks.co.za >

Wed, 01 Jul 2026 9:26:29 AM +0200

To "rdavid" <rdavid@judiciary.org.za>,"nhanekom" <nhanekom@judiciary.org.za>,"fismail" <fismail@judiciary.org.za>,"tsoundy" <tsoundy@judiciary.org.za>

Cc "ServiceDelivery" <ServiceDelivery@justice.gov.za>

Bcc "g.boy.willy" <g.boy.willy@gmail.com>

Dear Honourable Judge Presidents, Director David, and Respected Registrars,

Please find attached the Formal Notice of Administrative Default and Final Demand regarding the systemic failure to execute statutory duties, referenced as EH/JO/2026/003.

As detailed in the attached document, this office has received zero substantive responses regarding the matters enumerated in the Final Closure Report of 23 June 2026. Consequently, this notice serves as a final demand for the following actions to be completed within five (5) court days of receipt:

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Disclosure: Provision of the official audio recordings for the High Court proceedings of 25 March 2026 and 16 April 2026.

Rectification: A substantive written response to the Formal Escalation (EH/JO/2026/003).

Non-compliance with these demands will be treated as an admission of institutional obstruction, and the outlined escalations—including reports to the Judicial Service Commission, Parliamentary Portfolio Committees, and the Information Regulator—will proceed immediately.

Please govern yourselves accordingly.

Respectfully,

Sr Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)

Founder — EthicHawks Forensic Governance & Compliance Consultancy

info@ethichawks.co.za | 069 635 1435

Developer — Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform

CI (SA) Compliance Practitioner (Associate) — CISA Pledge to the Code of Ethical and Professional Conduct

Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) — Pending Final Certification Modules

<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this email, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.

1 Attachment(s)

EH_Notice_Administrative_Defea...

191 KB

SENDER (FROM): Wilbur William Matthee <info@ethichawks.co.za>
RECIPIENT (TO): Farzaana Ismail <FIsmail@judiciary.org.za>
CARBON COPY (CC): Tsakani Soundy <TSoundy@judiciary.org.za>
TIMESTAMP (DATE): Wed, 11 Mar 2026 17:06:40 +0200
SUBJECT LINE: Re: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS
=====

Dear Ms. Ismail,

I confirm that I have attended the CCMA/Bargaining Council, and I have two certificates of non-resolution regarding this matter. Please find both certificates attached for your review.

Kind regards,

Wilbur William Matthee

On Wed, 11 Mar 2026, 15:45 Farzaana Ismail, <FIsmail@judiciary.org.za> wrote:

> Dear Sir

>

>

>

> I have had a look at your papers, I wanted to enquire , have you been to
> the CCMA or Bargaining council ? do you have an outcome ?

>

>

>

> Regards

>

>

>

>

>

> *From:* Wilbur William Matthee <info@ethichawks.co.za>

> *Sent:* Monday, 09 March 2026 15:22

> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>

> *Cc:* Tsakani Soundy <TSoundy@judiciary.org.za>

> *Subject:* Re: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS

>

>

>

> Dear Ms Ismail,

>

>

>

> Thank you for your response. I confirm receipt and look forward to your
> follow-up communication.

>

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>

> Should you require any additional documents or information to process my
> application, please do not hesitate to contact me at this email address or
> on 069 635 1435.

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> Kind regards,

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> On Mon, 09 Mar 2026, 08:28 Farzaana Ismail, <FIsmail@judiciary.org.za>
> wrote:
>
> Dear Sir
>
>
>
> I will follow up and let you kno.
>
>
>
> Regards
>
>
>
>
>
> *From:* Wilbur William Matthee <info@ethichawks.co.za>
> *Sent:* Friday, 06 March 2026 15:02
> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>
> *Subject:* RE: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS
>
>
>
> Dear Ms. Ismail,
>
>
>
> I am writing to follow up on my urgent filing submitted, 5 March 2026, for
> manual loading via the Labour Court online portal.
>
>
>
> Portal credentials provided:
>
> Email: info@ethichawks.co.za
>
> Password: Goth-boy89
>
>
>
> Brief matter description:
>
>
>
> BCEA s77A application - unlawful salary deduction (40.47%) - urgent
> interim relief sought due to current destitution (no running water, facing
> eviction end of March 2026).
>
>
>
> I would be most grateful if you could confirm:
>
> Receipt of the Notice of Motion and supporting documents;
>
>
>
> Whether any additional information or documentation is required from my

> side.
>
>
>
> The urgency of this matter arises from the fact that I am currently living
> without running water and facing imminent eviction. The Notice of Motion
> requests interim relief (payment within 72 hours of service to prevent
> homelessness) which I can only activate once I have the case number to
> serve on the Respondents.
>
>
>
> I apologize for the follow-up and understand that the Registrar's office
> is managing many matters. Any guidance you can provide on timing would be
> greatly appreciated so I can prepare for immediate service upon receipt of
> the case number.
>
>
>
> Thank you for your patience and assistance.
>
>
>
> Yours faithfully,
>
>
>
> Wilbur William Matthee
>
> Applicant in Person
>
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> iC¼
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>
>
>
> *Disclaimer:*
>
> The information contained in this communication from
> fismail@judiciary.org.za sent at 2026-03-09 08:28:14 is confidential and
> may be legally privileged. It is intended solely for use by
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>
>
> *Disclaimer:*
>
> The information contained in this communication from
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>

SENDER (FROM): Wilbur William Matthee <info@ethichawks.co.za>
RECIPIENT (TO): Tsakani Soundy <TSoundy@judiciary.org.za>
CARBON COPY (CC): Farzaana Ismail <FIsmail@judiciary.org.za>, RDavid@judiciary.org.za
TIMESTAMP (DATE): Fri, 10 Apr 2026 09:48:33 +0200
SUBJECT LINE: Re: Urgent Plea: Filing Deadline / Intent to File
=====

Dear Ms. Soundy,

Thank you for your email.

Please note that the court document provided appears to be inaccurate, as it refers to a matter involving David Potgieter and the City of Cape Town rather than my own.

I have attached my statement of claim, which I shared with you yesterday morning. I have ensured that this attachment includes the complete bundle of documents required for filing.

Kind regards,

Wilbur William Matthee

On Fri, 10 Apr 2026, 09:32 Tsakani Soundy, <TSoundy@judiciary.org.za> wrote:

> Good day

>

>

>

> Attached is your stamped copy of the statement of claimed.

>

>

>

> Case number is written on the cover page.

>

>

>

> Regards

>

>

>

>

>

> *From:* Wilbur William Matthee <info@ethichawks.co.za>

> *Sent:* Thursday, April 9, 2026 3:41 PM

> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>

> *Cc:* Tsakani Soundy <TSoundy@judiciary.org.za>

> *Subject:* Re: Urgent Plea: Filing Deadline / Intent to File

>

>

>

> Dear Ms Ismail,

>

>

>

> I really do not know what i can do for the registrar to assist me.

>

>

>

> I am already on the streets i dont know what else to do. Please assist me
> with the case number in oeder to serve the Respondent.

>

>
>
> I beg you please help me.
>
>
>
> Sincerely
>
>
>
> Wilbur
>
>
>
>
>
>
>
> On Thu, 09 Apr 2026, 10:02 Wilbur William Matthee, <info@ethichawks.co.za>
> wrote:
>
> Kindly assist with the case number for service. 1%
>
>
>
> Regards
>
>
>
>
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>
> On Thu, 09 Apr 2026, 09:58 Wilbur William Matthee, <info@ethichawks.co.za>
> wrote:
>
> Dear Ms Ismail,
>
>
>
> The initial document i shared yesterday had a few technical issues and as
> a result that it was not signed by me the document i sent attached is the
> correct signed version.
>
>
>
> I was up all night to make the necessary adjustments to the statement of
> claim.
>
>
>
> Kindly assist with filling the correct signed SOC.
>
>
>
> Thank you for confirming it has been accepted. Attached the signed SOC.
> Phone on 2%.
>
>
>
> Kind regards
>

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>
> On Thu, 09 Apr 2026, 09:54 Farzaana Ismail, <FIsmail@judiciary.org.za>
> wrote:
>
> Good day Sir
>
>
>
> I have been informed that your matter was approved and a case number was
> issued.
>
>
>
> Regards
>
>
>
>
>
> *From:* Wilbur William Matthee <info@ethichawks.co.za>
> *Sent:* Thursday, 09 April 2026 09:47
> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>; Tsakani Soundy <
> TSoundy@judiciary.org.za>
> *Subject:* Urgent Plea: Filing Deadline / Intent to File
>
>
>
> Dear Ms. Ismail and Ms. Soundy,
>
>
>
> I am writing to you in a state of extreme urgency regarding the deadline
> for filing my constructive dismissal and whistleblowing-related
> application, which falls today, 9 April 2026.
>
>
>
> I am currently facing severe financial destitution and homelessness as a
> direct result of the occupational detriment I have suffered. Due to these
> circumstances, and I am unable to log in to the filing portal or physically
> reach the court. I am reaching out to formally request the Court's
> indulgence and assistance in ensuring my matter is recorded as "intended
> for filing" today to avoid the further legal hurdle of a condonation
> application—a process I simply cannot afford.
>
>
>
> I wish to draw the Registrar's attention to the following:
>
>
>
> Ministerial Recognition of Hardship: As of yesterday, 8 April 2026, the
> Minister of Justice, Mmamoloko Kubayi, officially released the **Protected
> Disclosure Bill. The Minister explicitly acknowledged that whistleblowers
> in South Africa face "weak protections" and "limited support," specifically
> highlighting the need for legal and financial assistance for those targeted
> for making protected disclosures.
>

>
>
> Constitutional Right to Access to Justice: My inability to file today is
> not due to negligence, but a direct consequence of the "priority 1"
> material risk report I filed, which led to my current state of destitution.
>
>
>
> *Request for Assistance: I am a specialist nurse (BTech Psychiatry/Health
> Management) currently unable to maintain even basic connectivity. I am
> pleading for the court to accept this email as a placeholder for my
> application while I seek an emergency means to finalize the digital upload.
> Or assistance by tour office please.
>
>
>
> I am a whistle-blower who has acted in the public interest within the NHI
> framework. To be barred from justice due to the very poverty caused by my
> disclosure would be a failure of the protections the Minister has just
> pledged to uphold.
>
>
>
> I humbly request your guidance on how I may proceed under these
> extraordinary circumstances.
>
>
>
> Sincerely,
>
>
>
> Wilbur Matther
>
>
>
> *Disclaimer:*
>
> The information contained in this communication from
> fismail@judiciary.org.za sent at 2026-04-09 09:54:32 is confidential and
> may be legally privileged. It is intended solely for use by
> info@ethichawks.co.za and others authorized to receive it. If you are not
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>
>
> *Disclaimer:*
>
> The information contained in this communication from
> tsoundy@judiciary.org.za sent at 2026-04-10 09:32:45 is confidential and
> may be legally privileged. It is intended solely for use by
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>

CHRONOLOGICAL TABLE OF CORRESPONDENCE

OCJ Online Portal — 2026

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Thu, 05 Mar • 05:43	OCJ_Online_Portal_1	e-Services Registration	OTP: 10113 – Confirmation of registration on e-Government Portal
Thu, 12 Mar • 17:34	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Password Reset	"You have successfully reset your password"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Account Reactivation	Account reactivated notification
Fri, 13 Mar • 13:58	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Wed, 18 Mar • 09:20	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Wed, 18 Mar • 09:31	OCJ_Online_Portal	Password Reset	"You have successfully reset your password"
Wed, 18 Mar • 09:31	OCJ_Online_Portal	Account Reactivation	Account reactivated notification (duplicate)
Wed, 18 Mar • 14:07	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Thu, 19 Mar • 07:21	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Thu, 19 Mar • 13:58	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Fri, 20 Mar • 11:43	OCJ_Online_Portal	Rejection	"Your Initiating Document has been rejected"
Fri, 20 Mar • 13:47	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Mon, 23 Mar • 06:29	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Mon, 23 Mar • 06:29	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled"
Mon, 23 Mar • 11:59	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled"
Mon, 23 Mar • 12:37	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Mon, 23 Mar • 12:37	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Mon, 23 Mar • 14:15	OCJ_Online_Portal	Case Access Granted	"You have been granted access to a case"
Tue, 24 Mar • 11:28	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Tue, 24 Mar • 15:28	OCJ_Online_Portal	Hearing Scheduled	"A Hearing has been scheduled"
Thu, 02 Apr • 00:47	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Thu, 02 Apr • 08:36	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Tue, 07 Apr • 15:45	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Wed, 08 Apr • 10:35	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Mon, 13 Apr • 11:56	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Mon, 13 Apr • 11:58	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Wed, 15 Apr • 12:25	OCJ_Online_Portal_1	Document Filed	"Your document has been filed by OCJ Courts" (x4)
Wed, 15 Apr • 12:25	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x2)
Wed, 15 Apr • 18:20	OCJ_Online_Portal_1	Case Access Granted	"You have been granted access to a case" (x2)
Thu, 16 Apr • 17:02	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x4)
Thu, 16 Apr • 17:04	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x2)
Thu, 23 Apr • 10:48	OCJ_Online_Portal	Case Access Granted	"You have been granted access to a case"
Fri, 24 Apr • 19:15	OCJ_Online_Portal	Status message only	(Sending with 2 rain)
Thu, 30 Apr • 10:05	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Thu, 30 Apr • 10:05	OCJ_Online_Portal	Rejection	"Your Initiating Document has been rejected"
Sun, 03 May • 14:40	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x6)
Sun, 03 May • 14:40	OCJ_Online_Portal_1	Status message only	(Sending with 2 rain)
Mon, 04 May • 11:55	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x6)
Mon, 04 May • 11:56	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x7)
Tue, 05 May • 15:07	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Tue, 05 May • 15:07	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Tue, 05 May • 15:09	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Thu, 07 May • 09:50	OCJ_Online_Portal_1	Document Filed & Submitted	Multiple notifications (filed & submitted)
Tue, 19 May • 08:23	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Tue, 19 May • 12:05	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled. Please log on to OCJ Court Online System for more details."
Tue, 19 May • 12:06	OCJ_Online_Portal	Hearing Scheduled	"A Hearing has been scheduled" (Duplicate)

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Tue, 19 May • 12:06	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Tue, 19 May • 15:04	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Thu, 21 May • 13:49	OCJ_Online_Portal	Document Filed & Submitted	Multiple notifications
Thu, 21 May • 13:51	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Mon, 25 May • 17:06	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x2)
Wed, 27 May • 13:57	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x4)
Wed, 27 May • 13:58	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x4)
Fri, 29 May • 11:44	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Thu, 18 Jun • 10:55	OCJ_Online_Portal	 GHOST NOTIFICATION	"A Hearing has been scheduled. Please log on to OCJ Court Online System for more details."

Summary of Correspondence Types

Type	Count	Notes
Registration / OTP	1	e-Services registration
Password Resets	3	Multiple reset notifications
Account Reactivations	3	Duplicate reactivation notices
Initiating Document – Received	8	Document receipt confirmations
Initiating Document – Rejected	6	Multiple rejections without clear resolution
Initiating Document – Filed	4	Case commencement confirmations
Document Submitted	~40+	Excessive repetitive notifications
Document Filed	~12+	Filed confirmations
Hearing Scheduled	6	Including duplicate / ghost notifications
Case Access Granted	4	Access grant notifications

Ghost Notification — POPI Act Breach

Issue Identified

“A Hearing has been scheduled” notifications appear to be duplicate / ghost notifications that:

- Do not contain specific case details (no case number, court location, date/time, or judge information)
- Provide no actionable information beyond directing the user to log in
- May constitute spam / unsolicited communications under the POPI Act
- Appear to be system-generated with no meaningful content
- The last occurrence on Thursday, 18 June 2026 at 10:55 is particularly concerning as it provides no hearing details while scheduling multiple hearings

POPI Act Concerns

- Section 11 – Processing of personal information must be adequate, relevant, and not excessive
- Section 22 – Information must be collected directly from the data subject (not via vague notifications)
- Section 69 – Direct marketing restrictions (spam / unsolicited communications)
- Duplication – Multiple identical notifications constitute excessive processing
- Lack of specificity – Not providing actual hearing details undermines the purpose of the notification

Submission to Information Regulator

Subject	OCJ Court Online Portal – Ghost Notification / POPI Act Breach
Notification Type	“A Hearing has been scheduled”
Date of Concern	Thursday, 18 June 2026 • 10:55 (and preceding duplicates)
Issue	Unsolicited, vague notifications that do not provide necessary information; may constitute spam
POPI Act Section	Section 69 (Direct Marketing), Section 11 (Processing Principles)
Supporting Evidence	Chronological log showing multiple duplicate notifications without substantive information

Prepared by EthicHawks Forensic Governance & Compliance Consultancy for inclusion in the Forensic Governance Portfolio evidence record. Source data derived from OCJ Court Online System e-mail notification logs, 2026.

ANNEXURE

A10

Screenshot of “Multiple Emails per 1 Portal Upload”

Date of Evidence:	[To be confirmed by Complainant]
Related Complaint:	Complaint 1 – Aggravating Factor (Manual Control of Document Uploading)
Responsible Official:	Registrar Tsakani Soundy (TSoundy@judiciary.org.za)
Case Reference(s):	2026-077546
Statutory Reference:	POPIA Sections 19, 26, 74
Evidence Type:	Screenshot – portal / email system
<i>This annexure evidences irregularities in the document upload process following the Registrar's assumption of manual control over filings on 5 May 2026. Please confirm the exact date of this screenshot before submission.</i>	

Evidence for A10 follows on the next page.

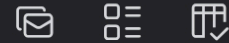


Q | Search (/)



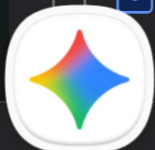
Mail

Inbox ▾ • 57 Unread emails



Last 7 days

- ☐ Courtonline@judiciary.org.za
▶ Document Submitted CRM:000... JUL 7
- ☐ Courtonline@judiciary.org.za
▶ Document Submitted CRM:000... JUL 7
- ☐ Courtonline@judiciary.org.za
▶ Document Submitted CRM:000... JUL 7
- ☐ **Courtonline@judiciary.org.za**
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- ☐ Courtonline@judiciary.org.za
▶ Document Submitted CRM:000... JUL 7
- ☐ **Courtonline@judiciary.org.za**
▶ Document Submitted CRM:000... JUL 7





Q | Search (/)



Mail

Inbox ▾ • 57 Unread emails



New



Last 7 days



Courtonline@judiciary.o...



Document Submitted CR...

JUL 6



Courtonline@judiciary.o...



Document Submitted CR...

JUL 6



Courtonline@judiciary.o...



Document Submitted CR...

JUL 6



Courtonline@judiciary.o...



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Document Submitted CR...

JUL 6

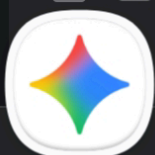


Courtonline@judiciary.o...



Document Submitted CR...

JUL 6



< Courtonline@judiciary.org.za >

Tue, 07 Jul 2026 3:57:22 PM +0200

To "Wilbur Matthee"<info@ethichawks.co.za>

Dear Wilbur Matthee ,

This is to inform you that a document has been submitted as follows:

Case Title : Afrocentric Investment Corporation Limited v. Wilbur William Matthee # 2026-086906 # AFR1282

Case Number : 2026-086906

Name of Document : Contempt Application

Date and Time : 2026/07/07 11:35

Regards,

OCJ Court Online

This is a system generated email notification. Please do not reply to this message.

Disclaimer:

The information contained in this communication from courtonline@judiciary.org.za sent at 2026-07-07 15:57:17 is confidential and may be legally privileged. It is intended solely for use by info@ethichawks.co.za and others authorized to receive it. If you are not info@ethichawks.co.za you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by [Office Of The Chief Justice](#)**